

REPUBLIC OF THE PHILIPPINES
SUPREME COURT
Manila

SARA Z. DUTERTE, in her capacity as
the Vice President of the Philippines,
Petitioner,

-versus-

G.R. No. _____
*For: Petition for Certiorari and Prohibition
under Rule 65 of the Rules of Court [With
Urgent Application for Temporary
Restraining Order and/ or Writ of
Preliminary Injunction]*

**HOUSE OF REPRESENTATIVES OF
THE PHILIPPINES**, represented by
FAUSTINO G. DY III, in his capacity as
Speaker, **HOUSE COMMITTEE ON
JUSTICE**, represented by **REP.
GERVILLE A. REYES-LUISTRO**, in her
capacity as Chairperson, **SENATE OF
THE PHILIPPINES**, represented by
VICENTE C. SOTTO III, in his capacity
as Senate President, **JOEL T.
SABALLA, JOSELITO S. SARABIA,
EDILBERTO J. BACULI, ROGELIO D.
DEL ROSARIO, LEONARD P.
AREVALO, PINKY L. TAM, MARIA
LORETO A. LOPEZ, JALILIO O. DELA
TORRE, DEMOCRITO C. BARCENAS,
LOURDES U. BARCENAS, MA. LIZA
H. RUEDAS, VIOLETA B. CECILIO,
GERALDINE J. DENOGA, and
NATHANIEL G. CABRERA,**
Respondents.

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PETITION FOR CERTIORARI AND PROHIBITION

[With Urgent Application for Temporary Restraining Order
and/ or Writ of Preliminary Injunction]

Petitioner, by counsel, respectfully states:

1. This is a Petition for *Certiorari* and Prohibition under Rule 65 of the Rules of Court seeking to declare as void *ab initio* the impeachment complaints against the petitioner and committee proceedings arising therefrom, including any and all incidents relative thereto because:

- a. The initiation process conducted by respondents House of Representatives¹ and the Committee on Justice is marred by grave abuse of discretion amounting to lack or excess of jurisdiction and in contravention of the Constitution as well as the guidelines laid down by this Honorable Court in Francisco vs. House of Representatives, et al.,² Gutierrez vs. House of Representatives Committee on Justice, et al.,³ and Duterte vs. House of Representatives, et al.,⁴
- b. The Saballa⁵ and Cabrera⁶ Complaints are void *ab initio* for violating the One-Year Bar Rule under Section 3(5) Article XI of the 1987 Constitution, which prohibits the initiation of more than one impeachment proceeding against the same official within a period of one year, following the effective non-viability of the earlier initiated Castro⁷ and Dee⁸ complaints on March 2, 2026 through their respective setting aside and withdrawal;
- c. Accordingly, any and all proceedings that emanate from these unconstitutional complaints are also unconstitutional;
- d. The conduct of trial – whether mini or full-blown - by respondent Committee on Justice and the exercise of its ancillary incidents, including the issuance of compulsory processes, are unconstitutional and encroaches on the power of the Senate solely vested in the latter by the Constitution; consequently, Section 7 of the Rules of Procedure in Impeachment Proceedings of the 19th Congress, HOR adopted by the 20th Congress insofar as it allows for such proceedings is likewise unconstitutional;
- e. Respondent Committee on Justice circumvented the limits of its constitutional task by improvising additional set of Rules that were neither contemplated by the Constitution nor published

¹ Hereafter, "HOR"

² G.R. No. 160261, November 10, 2003; hereafter, "Francisco"

³ G.R. No. 193459, February 15, 2011; hereafter, "Gutierrez"

⁴ G.R. No. 278353/278359, Decision dated July 25, 2025, which attained finality via the Resolution dated January 28, 2026, denying the respondent House of Representatives' Motion for Reconsideration; hereafter, "Duterte"

⁵ Filed on February 9, 2026; A copy of the Saballa Complaint is attached as Annex A.

⁶ Filed on February 18, 2026; A copy of the Cabrera Complaint is attached as Annex B.

⁷ Filed on February 2, 2026

⁸ Also filed on February 2, 2026

and promulgated by the Congress in whom the Constitution solely vests the power to promulgate rules to effectively carry out the constitutional provisions on the impeachment process;

- f. The proceedings conducted by respondent Committee on Justice remarkably show grave abuse of discretion and reek of double standards in the treatment of impeachment complaints referred to it, and evince a clear fishing expedition, resulting in the violation of petitioner's constitutional rights to due process, presumption of innocence, and equal protection of the laws, which this Honorable Court directed in its ruling in Duterte that applies to the entire impeachment process.

2. Direct resort to this Honorable Court in its original jurisdiction is justified as most, if not all, of the exceptions to the principle of hierarchy of courts, are present. The questions presented in this Petition are genuine issues of constitutionality that must be addressed at the most immediate time, of transcendental importance, exigent, and best decided by this Honorable Court.⁹

3. These constitutional issues involve novel issues on the constitutional limits to the exercise of the HOR of its power to initiate all cases of impeachment and there is no other plain, speedy, and adequate remedy in the ordinary course of law.¹⁰

4. Under the attendant facts and circumstances in this case, petitioner raises, among others, the following issues on the impeachment proceedings against her:

- a. Whether respondent HOR committed grave abuse of discretion amounting to lack or excess of jurisdiction when it completely dispensed with the deliberations and voting in a public plenary session before it allegedly referred the four impeachment complaints to the respondent Committee on Justice, in patent disregard of the categorical pronouncements in Francisco, Gutierrez, and Duterte holding that such referral is not a mere mechanical act, but one that must be preceded by a deliberative process in a **public plenary session**;
- b. Whether the Speaker of respondent HOR and/or of its Committee on Rules committed grave abuse of discretion amounting to lack or excess of jurisdiction when they

⁹ See exceptions enumerated in *Bayyo Association, Inc. v. Secretary Tugade*, G.R. No. 254001, July 1, 2023, citing *Diocese of Bacolod v. Comelec*, 751 Phil. 301 (2015).

¹⁰ *Id.*

effected the mechanical and simultaneous referral of the four impeachment complaints to the Committee on Justice without the required prior plenary deliberations, thereby subverting the very purpose of the three-session-day period under Section 3(2), Article XI of the Constitution construed by this Honorable Court in Francisco, Gutierrez, and Duterte and thus, rendering such referral unconstitutional;

- c. Whether respondent Committee on Justice committed grave abuse of discretion amounting to lack or excess of jurisdiction when it arrogated unto itself the authority to devise and improvise additional set of rules of impeachment proceedings with neither the imprimatur of the HOR acting as a collective body nor the requirement of prior publication and, thereby, usurping prerogatives solely vested in the HOR as a collective institution;
- d. Whether respondent Committee on Justice committed grave abuse of discretion amounting to lack or excess of jurisdiction when it issued compulsory processes aimed at obtaining and/or gathering evidence against the petitioner beyond the four corners of the impeachment complaints before it, thereby exceeding the bounds of its limited role in the entire impeachment process;
- e. Whether the proceedings being conducted by respondent Committee on Justice, which its Chairperson described as a *mini-trial* and/or akin to *preliminary investigation*, in reality and as shown by the televised broadcasts of the committee proceedings coupled with the public pronouncements and statements of its members, are still within the contemplation of *hearing* sanctioned under Section 3(2), Article XI of the Constitution or a trial, the exercise of which is exclusively vested in the Senate under Section 3(6), Article XI, thereby rendering such proceedings, unconstitutional;
- f. Whether Sections 7 and 8 of Rule III of the Rules of Procedure in Impeachment Proceedings adopted by respondents HOR and Committee and Justice insofar as they allow examination and cross-examination of witnesses by members of the Committee alone, without corresponding right on the part of petitioner or her counsel, and other concomitant processes distinct to trial proceedings before the Senate aimed at fishing for evidence supportive of the impeachment complaints, are constitutional; and

- g. Whether respondent Committee on Justice and its members committed grave abuse of discretion amounting to lack or excess of jurisdiction when they subjected the petitioner to a different set of standards in the treatment of the impeachment complaints against her as opposed to the set of standards they employed with respect to comparable prior impeachment complaints.

5. Under the given factual circumstances, the issues raised by the petitioner require the immediate attention of this Honorable Court lest she continues to be subjected to an exercise of a grave abuse of authority by respondents HOR and its Committee on Justice through an illegal process.

6. Considering that the subject of the impeachment effort in this case is the removal and perpetual disqualification of the second highest official of the country elected by the overwhelming number of the electorate, the issues raised are of transcendental importance and demanded by the broader interest of justice, as the rights violated are constitutional in character. Effort must therefore be exerted to determine whether or not there was strict compliance with constitutionally-imposed procedures and observance of constitutional standards and restrictions.

7. This Petition raises genuine issues of constitutionality, involving as it does constitutional standards and parameters set under Article XI of the Constitution with respect to impeachment proceedings, and the controlling principles laid down by this Honorable Court in Francisco, Gutierrez, and Duterte.

8. There is no plain, speedy, and adequate remedy available to petitioner to stop the brazen and wanton disregard of her constitutional rights by respondent Committee on Justice except to seek urgent relief from this Honorable Court. If not corrected by a writ of *certiorari* and prohibition, petitioner stands to suffer from the consequences of an unconstitutional impeachment proceeding, including her eventual trial before the respondent Senate.

9. This Petition is being filed today, April 1, 2026, well-within the prescribed 60-day period under Rule 65 reckoned from the inclusion in the Additional Order of Business of the four impeachment complaints on February 23, 2026 and their supposed referral to respondent Committee on Justice on the same date. Attached to the original copy of this Petition is a copy of the official receipt showing the full payment of the requisite docket fees.

Parties

10. Petitioner Sara Z. Duterte is Filipino, of legal age, and the incumbent Vice President of the Republic of the Philippines. She may be served with notices and other processes through the undersigned counsel at 23/F Multinational Bancorporation Centre, 6805 Ayala Avenue, Makati City.

11. Respondent House of Representatives of the Philippines forms part of the 20th Congress. It is represented herein by Rep. Faustino G. Dy III as the current House Speaker. Respondent Committee on Justice is the committee of the HOR tasked under its Rules of Procedure on Impeachment Proceedings to whom the impeachment complaints were referred by the plenary. It is represented herein by its Chairperson, Rep. Gerville A. Reyes-Luistro.

Respondents HOR, Speaker Dy, and Rep. Luistro all hold office at the House of Representatives, Batasang Pambansa Complex, Batasan Hills, Quezon City, where they may be served with court notices and processes.

12. Respondent Senate of the Philippines is the other seat of legislative power consisting of 24 Senators at present. It is represented herein by its current Senate President, Senator Vicente C. Sotto III.

Respondents Senate of the Philippines and Senate President Sotto both hold office at Financial Centre, GSIS Building, J.W. Diokno Boulevard, Pasay City, where they may be served with court notices and processes

13. Respondents Joel T. Saballa, Joselito S. Sarabia, Edilberto J. Baculi, Rogelio D. Del Rosario, Leonard P. Arevalo, Pinky L. Tam, Maria Loreto A. Lopez, Jalilio O. Dela Torre, Democrito C. Barcenas, Lourdes U. Barcenas, Ma. Liza H. Ruedas, Violeta B. Cecilio, and Geraldine J. Denoga are the complainants in the Saballa Complaint.

They may be served with court notices and processes through their counsel before the HOR, Sapayan Lim Alvarez and Ligutan, at Unit 2N, Sail Center Commercial Complex, Jose L. Briones Street, North Reclamation Area, Cebu City, considering that the addresses stated for several complainants are not specific enough to allow effective service.

14. Respondent Nathaniel G. Cabrera is Filipino, of legal age, and the complainant in the Cabrera Complaint. He may be served with court notices and other processes at M.H. Del Pilar Street, Lemery, Batangas.

Statement of Facts and Antecedents

15. On July 25, 2025,¹¹ the Supreme Court rendered a Decision in Duterte vs. House of Representatives¹² declaring the Articles of Impeachment¹³ transmitted by respondent HOR of the 19th Congress to the Senate barred by Section 3(5), Article XI of the Constitution:¹⁴

¹¹ A copy of the Decision dated July 25, 2025 in Duterte vs. House of Representatives, G.R. No. 278353, is attached as Annex C

¹² G.R. No. 278353, Decision dated July 25, 2025, which attained finality via the Resolution dated January 28, 2026, denying the respondent House of Representatives' Motion for Reconsideration

¹³ Also previously referred herein as the nullified Fourth Impeachment Complaint

¹⁴ *Supra* at note 4

The Articles of Impeachment are DECLARED BARRED BY ARTICLE XI, SECTION 3(5) OF THE CONSTITUTION. Likewise, they are **UNCONSTITUTIONAL** and are deemed **NULL** and **VOID AB INITIO**. (emphasis retained)

16. In the same Decision, the Supreme Court also ruled *that no impeachment proceedings may be commenced by the House of Representatives during the 20th Congress against the Vice President earlier than February 6, 2026*.¹⁵ On January 28, 2026, the Honorable Supreme Court issued a Resolution¹⁶ denying with finality the HOR's Motion for Reconsideration of that Decision.

17. On February 2, 2026, before the lapse of said period and within the subsisting bar declared by the Supreme Court in Duterte, the first of the 4 impeachment complaints against the Vice President was filed by former Rep. Francisca "France" Castro, et al. (Castro Complaint). This Complaint was endorsed by Representatives Antonio L. Tinio,¹⁷ Sara J. Elago,¹⁸ and Renee Louise M. Co.¹⁹

18. On the same day, the second impeachment complaint was filed by Francis Joseph Aquino Dee, et al. (Dee Complaint), which was endorsed by Representatives Percival Cendaña²⁰ and Leila M. de Lima.²¹

19. On February 5, 2026,²² the Castro and Dee Complaints were referred to the Speaker of the House of Representatives, Rep. Faustino "Bojie" Dy III.²³

20. On February 9, 2026, the third impeachment complaint was filed by Father Joel Saballa, et al. and endorsed by Representative de Lima, the same member of the HOR who also endorsed the Dee Complaint that was later withdrawn and terminated. This was transmitted to the House Speaker on the same day.²⁴

21. Thereafter, on February 18, 2026, the fourth impeachment complaint was filed by Atty. Nathaniel G. Cabrera, endorsed by Representatives Bienvenido M. Abante, Jr. and Paolo P. Ortega V. This was transmitted to Speaker Dy the day after or on February 19, 2026.²⁵

¹⁵ Duterte, *supra* at note 4

¹⁶ A copy of the Resolution dated January 28, 2026 in Duterte vs. House of Representatives, G.R. No. 278353, is attached as Annex D

¹⁷ ACT Teachers Party-list

¹⁸ GABRIELA Women's Party-list

¹⁹ KABATAAN Party-list

²⁰ AKBAYAN Party-list

²¹ Mamamayang Liberal Party-list

²² VP Sara Duterte impeach raps sent to House Speaker's office, Philstar Global, February 6, 2026, available at <https://www.philstar.com/headlines/2026/02/06/2506189/vp-sara-duterte-impeach-raps-sent-house-speakers-office> (last accessed March 2, 2026)

²³ Hereafter, "House Speaker", "House Speaker Dy"

²⁴ Duterte impeachment: House secgen confirms 3rd complaint sent to Speaker, Inquirer.net, February 10, 2026, available at <https://newsinfo.inquirer.net/2180030/duterte-impeachment-house-secgen-confirms-3rd-complaint-sent-to-speaker> (last accessed March 2, 2026)

²⁵ All 4 impeach raps vs. Sara transmitted to House Speaker, Philstar Global, February 20, 2026, available at <https://www.philstar.com/headlines/2026/02/20/2509129/all-4-impeach-raps-vs-sara-transmitted-speaker> (last accessed March 1, 2026)

22. On February 23, 2026, all four impeachment complaints were included in the Order of Business through the Additional Reference of Business for Session No. 30²⁵ on the same day. All four impeachment complaints were referred by the HOR to the Committee on Justice also on February 23, 2026 without any plenary deliberations.

23. Also, the House Bill/Resolutions on these four impeachment complaints indicate that it was the Committee on Rules that performed the act of referral to the Committee on Justice, not respondent HOR, in violation of Section 3(2), Article XI of the 1987 Constitution, which vests the authority of the duty to refer impeachment complaints in respondent HOR, acting as a collective body, and not in any of its committees.

24. In addition, the Letter-Referral dated February 23, 2026 addressed to the Chairperson of the Committee on Justice, Rep. Gerville "Jinky Bitrics" R. Luistro,²⁷ and signed by the Deputy Secretary General of the HOR, Atty. David Robert U. Amorin, indicates that the four impeachment complaints *were referred by the Speaker to the Committee on Justice on even date.*²⁸

25. Said Letter-Referral is incorporated in the copies of the Saballa and Cabrera Complaints served by the Committee on Justice on the Vice President, as page 1 thereof,²⁹ together with the Notice to Respondent dated March 4, 2026. The pertinent portion of the Letter-Referral is reproduced below:

which were referred by the Speaker to the Committee on Justice on even date

Respectfully yours,

For the Secretary General

ATTY. DAVID ROBERT U. AMORIN
Deputy Secretary General
Legislative Operations Department

26. However, it is well-settled that *referral of the impeachment complaint to the proper committee is not done by the House Speaker alone either.*³⁰ This is explicit in Gutierrez:

The Constitution did not place the power of the "final say" on the lips of the House Secretary General who would otherwise be calling the shots in forwarding or freezing any impeachment complaint. **Referral of the complaint to the proper committee is not done by the House Speaker alone either, which explains why there is a need to include it in the Order of Business of the House. It is the**

²⁵ A copy of the Additional Reference of Business for Session No.30 dated February 23, 2026 is attached as **Annex E**, available at <https://www.congress.gov.ph/legislative-documents/order-of-business/> (last accessed March 7, 2026)

²⁷ Hereafter, "Rep. Luistro"

²⁸ See Page 1 of the copies of the Saballa and Cabrera Complaints served by the Committee on Justice on the Vice President; also attached here as **Annex F**

²⁹ *Id.*

³⁰ Gutierrez, *supra* at note 3

House of Representatives, in public plenary session, which has the power to set its own chamber into special operation by referring the complaint or to otherwise guard against the initiation of a second impeachment proceeding by rejecting a patently unconstitutional complaint.³¹ (emphasis and underscoring supplied)

27. Thereafter, a review of the public broadcast of the plenary session conducted by the HOR on February 23, 2026 confirms the fact that there was neither deliberations nor voting by it, acting as a collective body, before they were allegedly referred to the respondent Committee on Justice.³²

28. This is particularly relevant considering the subsequent determination by the Committee on Justice on March 2, 2026 that the Castro Complaint violated the subsisting bar under the Duterte ruling, a simple determination it could have very well made during its plenary session on February 23, 2026 had it conducted the required deliberations.

29. As explained by this Honorable Court in Gutierrez, the HOR is possessed with the discretion not to refer a subsequent impeachment complaint to the Committee on Justice where there is a clear, existing one-year bar, as in this case, which the Committee on Justice had, in fact, determined on its first day of committee deliberations on March 2, 2026, prompting it to set aside the Castro Complaint for violation of the One-Year Bar Rule:

With respect to complaints for impeachment, the House has the discretion not to refer a subsequent impeachment complaint to the Committee on Justice where official records and further debate show that an impeachment complaint filed against the same impeachable officer has already been referred to the said committee and the one year period has not yet expired, lest it becomes instrumental in perpetrating a constitutionally prohibited second impeachment proceeding.³³ (emphasis and underscoring supplied)

30. In Gutierrez, this Honorable Court made clear that the act of referral of an impeachment complaint is not a mechanical act and circumspect deliberations by the HOR before any such referral is indispensable in order that *it does not become instrumental in perpetrating a constitutionally prohibited second impeachment proceeding*.³⁴

31. Jurisprudence is thus clear: it is the HOR, acting as a **collective body** in a public plenary session, that is vested with the power to perform the act of referral of an impeachment complaint, and not a mere committee nor its Speaker alone.

³¹ Gutierrez, *supra* at note 3

³² See LIVE | House of Representatives regular session (February 23, 2026), News5Everywhere, available at <https://www.youtube.com/watch?v=fV1FxUT4Qew&t=621s> (last accessed March 8, 2026); petitioner undertakes to submit a USB copy of the downloaded files should this Honorable Court require it

³³ Gutierrez, *supra* at note 3

³⁴ *Id.*

32. In light of these unequivocal pronouncements and rulings of no less than the Supreme Court, the referral of the four impeachment complaints to respondent Committee on Justice is undeniably **non-compliant** with the constitutional requirements. This fundamental defect renders the basis of these impeachment proceedings null and void *ab initio* and, thus, incapable of producing any valid legal effect.

33. Yet, despite non-compliance by the HOR with these settled guidelines and constitutional standards for a valid referral, respondent Committee on Justice proceeded to conduct hearings on the four impeachment complaints from March 2 to 4, 2026 supposedly to determine whether they were sufficient in form and substance.

34. However, a day prior to the first day of Committee deliberations or on March 1, 2026, several media outlets reported that the complainants in the Dee Complaint had decided to **withdraw** the second impeachment Complaint, expressing their full support for the Saballa Complaint "*containing the same grave allegations and substantial evidence*" as theirs.³⁵

35. At the start of its deliberations on March 2, 2026, the endorser of the Dee Complaint, Rep. De Lima, confirmed its withdrawal, which the Chairperson of the Committee on Justice, Rep. Luistro, acknowledged and placed on record.

36. Even at this point, the categorical withdrawal of the Dee Complaint should have precluded any further proceedings on the remaining impeachment complaints.

37. However, the Committee on Justice continued to act on the Castro Complaint, ultimately **setting it aside** on the ground that it violated the One-Year Bar Rule upon motion and consequent vote of 22 in the affirmative, 10 in the negative, and 0 abstention.

38. When asked on clarification what *setting aside* means, Rep. Luistro stated on record that, "*By set aside, it means that it will no longer be included in the proceeding of this committee.*" It is thus clear that at this further point, another impeachment proceeding that was initiated, albeit attended with a defective referral, has been terminated.

39. Under these circumstances then, the withdrawal and setting aside of the Dee and Castro Complaints, respectively, operate as their effective dismissal and/ or termination of at least two impeachment proceedings, which **bars any further impeachment proceedings** on the remaining Saballa and Cabrera Complaints.

40. In the July 2025 Decision in Duterte,³⁶ the Supreme Court held that the One-Year Bar is reckoned from the time an **impeachment complaint is dismissed**

³⁵ See 2nd impeach raps vs VP Sara withdrawn as group backs 3rd complaint for 'procedural expediency,' ABS-CBN, available at <https://www.abs-cbn.com/news/nation/2026/3/2/group-lawmakers-withdraw-2nd-impeach-raps-vs-vp-sara-to-speed-up-process-0911> (last accessed March 8, 2026), a printed copy of which is attached as **Annex G**

³⁶ *Supra* note at 4

or becomes no longer viable.³⁷ Once a complaint is withdrawn or set aside, nothing remains for respondent HOR or Committee on Justice to act upon.

41. Yet again, in the same committee hearing on March 2, 2026, respondent Committee on Justice deliberated on and thereafter, proceeded to declare the Saballa and Cabrera Complaints sufficient in form.

42. After which, respondent Committee on Justice continued to hold hearings the following day, March 3, 2026 until March 4, 2026, which culminated in its alleged determination that the remaining two complaints – Saballa and Cabrera – are sufficient in substance.

43. As will be explained below, all these actions done in sequence show that multiple impeachment proceedings were initiated against the same official within a one-year period – an act clearly proscribed by the Constitution under Section 3(5) Article XI.

44. On March 16, 2026, within the 10-day non-extendible period given to her within which to file her Answer to the remaining Saballa and Cabrera Complaints, the Vice President was constrained to file her Consolidated Verified Answer *Ad Cautelam*, without waiving any jurisdictional and other objections, and her right to seek legal remedies available to her.

45. On March 18, 2026, respondent Committee on Justice, acting on motions that were seconded and unobjected, allegedly found the Saballa and Cabrera Complaints sufficient in grounds.³⁸ Both complainants in the Saballa and Cabrera Complaints submitted their respective Manifestations³⁹ waiving the filing of their Reply to the petitioner's consolidated Answer *ad cautelam*.

46. Despite respondent Committee on Justice's determination of alleged sufficiency in form, substance, and grounds of the remaining impeachment complaints, it did not conduct a hearing to vote for the submission of its report to the House together with the corresponding resolution, pursuant to Article XI, Section 3(2) of the Constitution. Instead, it scheduled a series of hearings on March 25, April 14, April 22, and April 29, 2026, which Rep. Luistro described in her media interviews as a “mini-trial.”

Discussion

47. The foregoing discussion is pleaded herein by reference.

48. ***The Saballa and Cabrera Complaints, and all proceedings relative thereto, are unconstitutional.*** It is respectfully submitted that the subsisting

³⁷ Duterte, *supra* note at 4

³⁸ See House panel finds grounds for VP Sara Duterte's impeachment sufficient, *Inquirer.net*, available at <https://newsinfo.inquirer.net/2197637/breaking-house-panel-finds-grounds-for-dutertes-impeachment-sufficient> (last accessed March 29, 2026)

³⁹ Attached hereto as Annexes H and I

impeachment proceedings based on the Saballa and Cabrera Complaints suffer from fatal defects that are fundamentally incompatible with the Constitution and the governing principles set forth in Francisco, Gutierrez and Duterte.

49. All these precedents agree that being a constitutional mechanism, the entire impeachment process is subject to constitutional standards, which, if violated, not only taints the impeachment proceeding, but more importantly compromises a most basic guarantee, that is, the constitutional right to due process.

50. In Francisco, the Supreme Court did not hesitate to exercise its expanded *certiorari* jurisdiction in ruling that the second impeachment complaint against the former Chief Justice Hilario Davide was barred under paragraph 5, Section 3 of Article XI of the Constitution. In so doing, the High Court pertinently reminded that no one is above the law or the Constitution, regardless of any perceived rank or power.

51. It, however, likewise reminded that this same precept means that *while the Chief Justice is not above the law and neither is any other member of this Court*,⁴⁰ the Chief Justice nonetheless is entitled to the full measure of the law. In the words of the Supreme Court: *But just because he is the Chief Justice does not imply that he gets to have less in law than anybody else. The law is solicitous of every individual's rights irrespective of his station in life.*⁴¹

52. In taking cognizance of the Petition in Gutierrez, the Court rejected the notion that its exercise of judicial review over impeachment proceedings would upset the system of checks and balances and affirmed that the determination of whether the HOR committed a violation of the Constitution or gravely abused its discretion amounting to lack or excess of jurisdiction in the exercise of its functions is well-within the Court's power.⁴²

53. In Duterte, the Supreme Court explained that *the legal nature of an impeachment proceeding brings it under the expanded certiorari jurisdiction*⁴³ of the Court under Section 1, Article VIII of the Constitution. This means that any grave abuse of discretion where the power is exercised in an arbitrary or despotic manner by reason of passion or personal hostility is correctible by the extraordinary writ of *certiorari*. It is thus settled that respondent HORs' exercise of its power or authority is not immune from judicial review.

54. The Supreme Court also held in Duterte⁴⁴ that "[t]he basic constitutional mandate is that public office is a public trust. Being a constitutional value, **any process seeking accountability of our public officers must take place within the strict framework and procedure outlined in the Constitution.** Those who participate in

⁴⁰ Francisco, *supra* at note 2.

⁴¹ *Id.*

⁴² Gutierrez, *supra* at note 3.

⁴³ Duterte, *supra* at note 4.

⁴⁴ *Id.*

this process are as accountable to our people as those who are made the subject of impeachment."⁴⁵ The Supreme Court added:

Impeachment is "a constitutional measure designed to protect the State from official delinquencies and malfeasance, the punishment of the offender being merely incidental." It is political in the sense that the proceedings are left in the hands of politically-elected bodies: the House of Representatives, who has the exclusive power to initiate, and the Senate, which has the power to convict. While the institutions that have control over the proceedings are inherently political, the proceeding itself was designed by the Constitution to be nonpartisan. ***Thus, how an impeachment proceeding should be conducted is not dependent on the will of politicians or a majority of one-third of the House of Representatives, but rather based on the strict language of the Constitution.*** (emphasis in the original)

55. Here, the actions taken by respondents HOR and Committee on Justice in these impeachment proceedings demonstrate clear transgressions of the Constitutional parameters and controlling principles outlined in settled jurisprudence. These violations affect the basic guarantee to due process, and of the Bill of Rights, which this Honorable Court had declared in the Decision in Duterte as applicable to the **entire** impeachment process.⁴⁶

56. ***No valid referral; impeachment complaints barred.*** While it is true that respondent HOR has the exclusive power to initiate all cases of impeachment,⁴⁷ it is equally true that the exercise of this power is not unbridled and thus, must be done within the limits of the constitutional framework.

57. The Constitution provides the procedure in the initiation of impeachment proceedings:

SECTION 3. (1) The House of Representatives shall have the exclusive power to initiate all cases of impeachment.

(2) A verified complaint for impeachment may be filed by any Member of the House of Representatives or by any citizen upon a resolution of endorsement by any Member thereof, **which shall be included in the Order of Business within ten session days, and referred to the proper Committee within three session days thereafter.** The Committee, after hearing, and by a majority vote of all its Members, shall submit its report to the House within sixty session days from such referral, together with the corresponding resolution. The resolution shall be calendared for consideration by the House within ten session days from receipt thereof.⁴⁸ (emphasis added)

⁴⁵ *Duterte*, *supra* at note 4

⁴⁶ *Id.*

⁴⁷ 1987 Constitution, Article XI, Section 3 (1)

⁴⁸ 1987 Constitution, Article XI, Section 3 (1) and (2)

58. The Constitution thus vests the power to initiate all cases of impeachment in the HOR as a collective body, and not on any of its officers, members or committees alone.

59. That it is the HOR, acting in plenary and as a collective body, that should perform the constitutional task of referral of an impeachment complaint to the proper Committee within three session days from its inclusion in the Order of Business, and not a mere committee or any of its officers, is enunciated in Gutierrez:

[...] Far from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.⁴⁹ (Emphasis and underscoring added)

60. Citing Gutierrez, the importance of this constitutional task of referral to the proper committee reposed in respondent HOR itself and not in any of its members alone is further emphasized in the Court's ruling in Duterte:

The Constitution did not place the power of the "final say" on the lips of the House Secretary General who would otherwise be calling the shots in forwarding or freezing any impeachment complaint. Referral of the complaint to the proper committee is not done by the House Speaker alone either, which explains why there is a need to include it in the Order of Business of the House. It is the House of Representatives, in public plenary session, which has the power to set its own chamber into special operation by referring the complaint or to otherwise guard against the initiation of a second impeachment proceeding by rejecting a patently unconstitutional complaint.⁵⁰ (emphasis and underscoring added)

61. The wisdom for this rule is plain: neither the Secretary General nor the Speaker, nor even the Committee on Rules, can substitute for the discretion of the entire House. Referral of the complaint to the proper committee is a constitutional task vested in respondent HOR itself, in public plenary session, and not in any of its members, officers or committee.

62. Here, records show that the referral of the four impeachment complaints was not done by respondent HOR acting as a collective body in a public plenary session, but either by a mere committee or the Speaker alone.

63. To recall, on February 23, 2026, all four impeachment complaints were included in the Order of Business through the Additional Reference of Business for Session No. 30⁵¹ on the same day.⁵²

⁴⁹ Gutierrez, *supra* at note 3

⁵⁰ See Duterte, *supra* at note 4

⁵¹ See Annex E

⁵² See Annexes F and G

64. However, the House Bill/Resolutions Nos. IMP003,⁵³ IMP004,⁵⁴ IMP005,⁵⁵ and IMP006⁵⁶ on these four impeachment complaints indicate that it was the Committee on Rules that performed the act of referral to respondent Committee on Justice, and not respondent HOR, in violation of Section 3(2), Article XI of the Constitution and prevailing jurisprudence, which vest the authority to refer impeachment complaints in the HOR, acting as a collective body in a public plenary session, and not in any of its committees, members or officers.

65. Again, referral of an impeachment complaint is not simply a mechanical act. It is respondent HOR as a collective body that should perform the constitutional task of referral of an impeachment complaint to the proper Committee within three session days from its inclusion in the Order of Business, and not a mere committee.

66. Referral is thus an act that must be performed within the constitutional framework and should neither be taken lightly nor perfunctorily. This is clear in Gutierrez:

[...] Far from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.⁵⁷ (emphasis and underscoring supplied)

67. That referral of an impeachment complaint under the first mode,⁵⁸ as in this case, is a constitutional act vested in the HOR as a collective body is further made clear by the Supreme Court in Duterte, repeating the rule that it is the collective body composed of the elected representatives that should perform the referral act as enunciated in Gutierrez:

Moreover, *Gutierrez v. House of Representatives Committee on Justice* categorically identifies the House of Representatives, not its speaker or secretary general, as having the power to decide to initiate an impeachment complaint and, in a public plenary session, to refer it to the proper committee:

Conscious of the legal import of each step, the House, in taking charge of its own proceedings, must deliberately decide to initiate

⁵³ House Bill/Resolution on the Castro Complaint (1st Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed March 6, 2026)

⁵⁴ House Bill/Resolution on the Dee Complaint (2nd Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed March 6, 2026)

⁵⁵ House Bill/Resolution on the Saballa Complaint (3rd Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed March 6, 2026)

⁵⁶ House Bill/Resolution on the Cabrera Complaint (4th Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed March 6, 2026)

⁵⁷ *Gutierrez vs. House of Representatives, et al.*, *supra* at note 3

⁵⁸ In *Duterte*, *supra* note 1, the Supreme Court ruled that 'Article XI, Section 3(2) of the Constitution states the two ways of filing an impeachment complaint. The first mode is by a 'verified complaint' by a citizen or member of the House of Representatives, which should be included in the Order of Business and referred to the House Committee on Justice. The Committee shall conduct a hearing, and by a majority vote of the Committee members, shall submit its Report and its corresponding Resolution to the House to be calendared for deliberation. The House may then, by a vote of one-thirds of all its members, either affirm the Committee's Resolution or override it, as the case may be. The Resolution, if affirmed, shall constitute the Articles of Impeachment.'

'The second mode under Article XI, Section 3(4) is a 'verified complaint or resolution' of impeachment filed by at least one-third of all the members of the House of Representatives.'

an impeachment proceeding, subject to the time frame and other limitations imposed by the Constitution. This chamber of Congress alone, not its officers or members or any private individual, should own up to its processes.

*The Constitution did not place the power of the "final say" on the lips of the House Secretary General who would otherwise be calling the shots in forwarding or freezing any impeachment complaint. Referral of the complaint to the proper committee is not done by the House Speaker alone either, which explains why there is a need to include it in the Order of Business of the House. **It is the House of Representatives, in public plenary session, which has the power to set its own chamber into special operation by referring the complaint or to otherwise guard against the initiation of a second impeachment proceeding by rejecting a patently unconstitutional complaint.***

*With respect to complaints for impeachment, the House has the discretion not to refer a subsequent impeachment complaint to the Committee on Justice where official records and further debate show that an impeachment complaint filed against the same impeachable officer has already been referred to the said committee and the one year period has not yet expired, lest it becomes instrumental in perpetrating a constitutionally prohibited second impeachment proceeding. *Far from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.**

Neither the secretary general nor the speaker can substitute for the discretion of the entire House. **They cannot deny the collective body composed of elected representatives the decision as to whether to dismiss outright or refer the complaint to the proper legislative body within 10 session days from the time the complaint is endorsed or filed by a member of the House.** (emphasis and underscoring supplied; citations omitted)

68. Clearly then, the act of referral is non-delegable. As confirmed by clear case law, the Constitution does not permit the performance of such act to any entities outside the collective body of respondent HOR. As the Supreme Court has explained, it is the HOR as a collective body that is tasked with this constitutional authority, and not its Speaker, or any of its officers, members or committees acting alone.

69. This is the reason why the Constitution grants the HOR a maximum of three session days within which to make the proper referral as this period is intended to afford the HOR **a period of deliberation**:

Far from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.⁵⁹ (emphasis and underscoring supplied)

⁵⁹ Duterte, *supra* at note 4

70. Here, records and the video of the February 23, 2026 plenary session of the HOR show that **no such deliberation by the HOR as a collective body was conducted prior to the referral**. Instead, the Additional Reference of Business concerning the four impeachment complaints was merely read, followed by a perfunctory striking of the gavel. Neither was there any voting done among the members of the House.

71. This fatal defect in the referral process is evident on the face of the Letter-Referral dated February 23, 2026 addressed to the Chairperson of the Committee on Justice⁶⁰ and signed by its Deputy Secretary General.⁶¹ The Letter-Referral expressly states that the four impeachment complaints *were referred by the Speaker to the Committee on Justice on even date*.⁶² Again, the pertinent portion of the Letter-Referral is reproduced below:

which were referred by the Speaker to the Committee on Justice on even date

Respectfully yours,

For the Secretary General:


ATTY. DAVID ROBERT U. AMORIN
Deputy Secretary General
Legislative Operations Department

72. However, it is well-settled that *referral of the impeachment complaint to the proper committee is not done by the House Speaker alone either*.⁶³ This is explicit in Gutierrez:

The Constitution did not place the power of the "final say" on the lips of the House Secretary-General who would otherwise be calling the shots in forwarding or freezing any impeachment complaint. **Referral of the complaint to the proper committee is not done by the House Speaker alone either, which explains why there is a need to include it in the Order of Business of the House. It is the House of Representatives, in public plenary session, which has the power to set its own chamber into special operation by referring the complaint or to otherwise guard against the initiation of a second impeachment proceeding by rejecting a patently unconstitutional complaint.**⁶⁴ (emphasis and underscoring supplied)

73. This rule is repeated in Duterte, which declared that "[n]either the secretary general nor the speaker can substitute for the discretion of the entire House. They cannot deny the collective body composed of elected representatives the

⁶⁰ Rep. Luistro

⁶¹ Atty. David Robert U. Amorin

⁶² See Annex F

⁶³ See Gutierrez., *supra* at note 3

⁶⁴ *Id.*

decision as to whether to dismiss outright or refer the complaint to the proper legislative body within 10 session days from the time the complaint is endorsed or filed by a member of the House.”⁶⁵

74. Notably, this Letter-Referral appears as page 1 of the copies of the Saballa and Cabrera Complaints served by the Committee on Justice on the Vice President,⁶⁶ and was transmitted together with the Notice to Respondent dated March 4, 2026.

75. The published video coverage of the plenary session conducted by the HOR on February 23, 2026⁶⁷ confirms the fact that no deliberation whatsoever was undertaken, nor was any vote taken by the House acting as a collegial body, on the four impeachment complaints, much less, on the propriety of their referral to the appropriate Committee.

76. It is thus clear that the collective will of the House was never invoked, expressed or obtained with respect to the disposition of said complaints. In the absence of such required deliberation and plenary vote, the supposed referral lacks the constitutional imprimatur of the HOR itself.

77. This omission of a fundamental duty is particularly relevant in light of the Committee on Justice's determination that the first impeachment complaint (Castro Complaint) violated the subsisting one-year bar under the Duterte ruling. Such a straightforward determination could have readily been made by the House itself during its plenary session on February 23, 2026 had it simply conducted the constitutionally required deliberations before any referral was made. The failure to undertake that basic inquiry at the proper stage of the process only underscores the patent irregularity that tainted the referral process from the very outset.

78. As explained by the Supreme Court in Gutierrez and Duterte, respondent HOR is possessed with the discretion **not** to refer a subsequent impeachment complaint to the Committee on Justice where there is a clear, existing one-year bar.

79. In this case, respondent Committee on Justice had, in fact, determined the existence of that bar on its first day of committee deliberations on March 2, 2026 that prompted it to set aside the Castro Complaint for violation of the subsisting one-year bar. The Supreme Court already made this categorically clear as early as in its ruling in Gutierrez:

With respect to complaints for impeachment, the House has the discretion not to refer a subsequent impeachment complaint to the Committee on Justice where official records and further debate show that an impeachment complaint filed against the same impeachable officer has already been referred to the

⁶⁵ See Duterte, supra at note 4

⁶⁶ See Annex F

⁶⁷ See LIVE | House of Representatives regular session (February 23, 2026), News5Everywhere, available at <https://www.youtube.com/watch?v=IV1FxUT4Qew&t=621s> (last accessed March 8, 2026)

said committee and the one year period has not yet expired, lest it becomes instrumental in perpetrating a constitutionally prohibited second impeachment proceeding.⁶⁸ (emphasis and underscoring added)

80. In fact, the Supreme Court did not deviate from this rule in its pronouncement in Duterte:

Neither the secretary general nor the speaker can substitute for the discretion of the entire House. They cannot deny the collective body composed of elected representatives the decision as to whether to dismiss outright or refer the complaint to the proper legislative body within 10 session days from the time the complaint is endorsed or filed by a member of the House.⁶⁹ (emphasis and underscoring added)

81. As early as in its ruling in Gutierrez, the Supreme Court emphasized that the act of referral of an impeachment complaint is not a mechanical act and prudent deliberations by the HOR before any such referral is indispensable in order that *it does not become instrumental in perpetrating a constitutionally prohibited second impeachment proceeding*.⁷⁰

Under the Rules of the House, a motion to refer is not among those motions that shall be decided without debate, but any debate thereon is only made subject to the five-minute rule. Moreover, it is common parliamentary practice that a motion to refer a matter or question to a committee may be debated upon, not as to the merits thereof, but only as to the propriety of the referral. With respect to complaints for impeachment, the House has the discretion not to refer a subsequent impeachment complaint to the Committee on Justice where official records and further debate show that an impeachment complaint filed against the same impeachable officer has already been referred to the said committee and the one year period has not yet expired, lest it becomes instrumental in perpetrating a constitutionally prohibited second impeachment proceeding. Far from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.⁷¹ (emphasis and underscoring added)

82. Gutierrez is further instructive on the rationale for placing the act of referral within the exclusive power of the House as a collective body:

The question as to who should administer or pronounce that an impeachment proceeding has been initiated rests also on the body that administers the proceedings prior to the impeachment trial. As gathered from Commissioner Bernas' disquisition in *Francisco*, a proceeding which "takes place not in

⁶⁸ See Gutierrez, *supra* at note 3

⁶⁹ See Duterte, *supra* at note 4

⁷⁰ See Gutierrez, *supra* at note 3

⁷¹ *Id.*

the Senate but in the House" precedes the bringing of an impeachment case to the Senate. In fact, petitioner concedes that the initiation of impeachment proceedings is within the sole and absolute control of the House of Representatives. **Conscious of the legal import of each step, the House, in taking charge of its own proceedings, must deliberately decide to initiate an impeachment proceeding, subject to the time frame and other limitations imposed by the Constitution.** This chamber of Congress alone, **not its officers or members or any private individual, should own up to its processes.**⁷² (emphasis and underscoring added)

83. Evidently, whether the supposed referral of the four impeachment complaints to respondent Committee on Justice was made by the Committee on Rules or by the Speaker, records of the February 23, 2026 plenary session unmistakably show that the referral process was undertaken in wanton disregard of the Constitution and of settled jurisprudence. Consequently, the purported referral must be declared void *ab initio*. It follows as a matter of fundamental legal principle that all proceedings emanating from such void act are themselves void and without legal effect.

84. Under the foregoing circumstances then, the subsisting impeachment complaints should have been dismissed by respondent Committee on Justice given that they are already rendered void by operation of the One-Year Bar Rule.

85. Nonetheless, even assuming *arguendo* that the four impeachment complaints can proceed beyond the HOR despite the fatal defect in their alleged referral to the Committee on Justice, the One-Year Bar would still attach at the committee level as the subsequent proceedings conducted herein show that the **withdrawal** of the Dee Complaint and the **setting aside** of the Castro Complaint for violation of the existing one-year bar under the Duterte ruling, effectively operate as their dismissal, thereby triggering a fresh application of the One-Year Bar.

86. ***Proceedings on the Saballa and Cabrera Complaints violate the One-Year Bar Rule.*** The Constitution provides that "[n]o impeachment proceedings shall be initiated against the same official more than once within a period of one year."⁷³ As discussed in Duterte, this constitutional bar ensures that impeachable officers are not unduly disrupted or harassed in performing their duties:

The one-year bar ensures that impeachable officers are not unduly disrupted or harassed in performing their duties. The article on public accountability highlights that a public office is a public trust, and that impeachment protects the government from erring high-ranking officials. The boundaries between the Legislative and Judicial branches cement the system of checks-and-balances between them and the role of each branch in exacting high standards of public service. The Bill of Rights ensures that all citizens, including public officials, are entitled to protection from government abuse, especially through the

⁷² See Gutierrez, *supra* at note 3

⁷³ 1987 Constitution, Article XI, Section 3 (5)

presumption of innocence, and the rights to due process and speedy disposition of cases. (emphasis added)

87. In the same case, it was also declared that "[t]he one-year bar is reckoned **from the time an impeachment complaint is dismissed or no longer viable.**"⁷⁴

88. Thus, in determining the reckoning period of the One-Year Bar Rule, the Supreme Court explained that a *nuanced approach is warranted to remain faithful to its purpose*⁷⁵ and that it should be reckoned from the initiation of the impeachment complaint when it was dismissed or partially acted upon:

Hence, a nuanced approach is warranted to remain faithful to the purpose of the one-year bar, given the impossibility of initiation due to the House's inaction and adjournment of its term. The one-year bar should be reckoned from the initiation of the impeachment complaint if unacted upon or when it is dismissed if it has been partially acted upon. The one-year bar may also start to commence upon the violation of the fundamental rights of the respondent which ousts the House or the Senate of jurisdiction. (emphasis retained; underscoring supplied)

89. Here, in determining the sufficiency in form and substance of the four impeachment complaints, respondent Committee on Justice first approved the withdrawal of the second impeachment complaint upon the request of the complainants and its endorsing representatives.

90. Even at this point, the categorical withdrawal of the Dee Complaint should have precluded any further proceedings on the remaining impeachment complaints. This withdrawal of the Dee Complaint squarely falls within the ambit of the non-viability circumstance contemplated in Duterte that this Honorable Court treats as a circumstance that will trigger the One-Year Bar.

91. Yet again, respondent Committee on Justice continued to act on the Castro Complaint, **setting it aside** on the ground that it violated the One-Year Bar Rule upon motion and consequent vote of 22 in the affirmative, 10 in the negative, and 0 abstention.

92. The non-viability status of the Castro Complaint due to its *setting aside* by respondent Committee on Justice is further confirmed when its Chairperson stated on record that, "*By set aside, it means that it will no longer be included in the proceeding of this committee.*"

93. It is thus clear that at this point, another impeachment proceeding that was initiated, albeit attended with a defective referral, has been terminated, and thus

⁷⁴ See *Duterte*, *supra* at note 4

⁷⁵ *Id.*

no longer viable – the same circumstance that triggers the one-year prohibition pronounced in Duterte.

94. In effect, the first and second impeachment complaints had already been acted upon and ultimately dismissed by the Committee on Justice, rendering both no longer viable.

95. Under these circumstances, the withdrawal and setting aside of the Castro and Dee Complaints, respectively, constitute their dismissal, thereby resulting in the termination of at least two impeachment proceedings and barring any further proceedings based on the remaining Saballa and Cabrera Complaints.

96. It is beyond dispute that in Duterte, this Honorable Court held that the One-Year Bar is reckoned from the time an **impeachment complaint is dismissed or becomes no longer viable**.⁷⁶

97. Thus, notwithstanding that the remaining Saballa and Cabrera impeachment complaints were filed and endorsed before the effective dismissal and withdrawal of the first two impeachment complaints, they remain barred under the clear principles established by the Supreme Court.

98. Acting on and sustaining the third and fourth impeachment complaints render the proceedings before the Committee on Justice unconstitutional. The public broadcast of the proceedings conducted by the respondent Committee on Justice shows that the Castro and Dee Complaints were (a) initiated upon their referral to the Committee on Justice, albeit defective, (b) partially acted upon since there were proceedings that caused the withdrawal of the Dee Complaint and distinct proceedings pertaining to the deliberations on and disposition of the Castro Complaint, and (c) effectively terminated by confirmation of the withdrawal (Dee Complaint) and through voting by the Committee members (Castro Complaint). Hence, a fresh application of the One-Year Bar was triggered on March 2, 2026, the date of dismissal of the Castro and Dee Complaints.

99. Note further that four impeachment complaints were treated separately and individually by the Committee on Justice, shown by the following sequence of actions it took to ultimately arrive at the alleged determination that the Saballa and Cabrera Complaints are sufficient in form, substance, and grounds:

- a. *First*, it accepted and approved the withdrawal of the Dee Complaint;
- b. *Second*, it deliberated on and decided to set aside the Castro Complaint for violation of the One-Year Bar as set in Duterte;
- c. *Third*, it proceeded to deliberate on the remaining Saballa and Cabrera Complaints;

⁷⁶ See Duterte, *supra* at note 4

- d. *Fourth*, it voted on the motion to declare the Saballa Complaint sufficient in form;
- e. *Fifth*, it voted on the motion to declare the Cabrera Complaint sufficient in form;
- f. *Sixth*, it voted to declare the Saballa Complaint sufficient in substance;
- g. *Seventh*, it voted to declare the Cabrera Complaint sufficient in substance;
- h. *Eighth*, it voted to declare the Saballa Complaint sufficient in grounds, and
- i. *Finally*, it voted to declare the Cabrera Complaint sufficient in grounds.

100. All these actions done in sequence show that multiple impeachment proceedings were initiated against the Vice President within a one-year period – an act clearly proscribed under Section 3(5), Article XI of the Constitution.

101. ***Committee proceedings are unconstitutional; respondent Committee on Justice has no power whatsoever to conduct trial and exercise incidents ancillary to it.*** It becomes evident that under the foregoing circumstances, any and all proceedings emanating from the unconstitutional Saballa and Cabrera Complaints are void *ab initio*. These include the conduct of hearings that ultimately found the remaining Saballa and Cabrera impeachment complaints purportedly sufficient in form, substance, and grounds.

102. The unconstitutionality of the proceedings conducted by respondent Committee on Justice is plain on their face. The totality of circumstances reveals a glaring grave abuse of the entire impeachment process that shows a pre-ordained effort to set the stage for what it describes as a “mini trial” and embark on a fishing expedition to salvage otherwise deficient impeachment complaints.

103. It is indisputable that the power to try impeachment cases is not a power that neither of the respondents HOR nor the Committee on Justice possesses. The Constitution confers no such authority to try evidence, issues, and matters, or cure fatal defects in the impeachment complaints. By arrogating unto itself functions that are reserved for trial, that under the Constitution only the Senate acting as an impeachment court can do, the respondent Committee acted in excess of its jurisdiction and with grave abuse of discretion.

104. The Constitution vests the authority and power to conduct trial **solely** in the Senate. This is clear in Section 3(6), Article XI of the Constitution:

The Senate shall have the sole power to try and decide all cases of impeachment. When sitting for that purpose, the Senators shall be on oath or affirmation. When the President of the

Philippines is on trial, the Chief Justice of the Supreme Court shall preside, but shall not vote. No person shall be convicted without the concurrence of two-thirds of all the Members of the Senate.⁷⁷ (emphasis supplied)

105. The Constitution leaves no room for interpretation: it is only the Senate that can conduct trial in all cases of impeachment. Even considering that Section 3(2), Article XI allows the committee to conduct a hearing for purposes of submitting its report to the House within sixty session days from referral, the same does not give the Committee any power or jurisdiction to conduct any form of trial – whether *mini* or full-blown – much less, receive and try any evidence.

106. Here, the preconceived intent to stage a trial or what Rep. Luistro stated as a *mini trial* and gather evidence inexistent in the complaints, is manifest from the statements of the members of the respondent Committee themselves.

107. During the committee hearing on March 2, 2026, Rep. Leila De Lima made the following statements:

*The numerous documents evidencing payments or the debts with fictitious names are smoking guns. Saballa et al.'s complaint is with many other documentary evidence which are also smoking guns. And even assuming without conceding that the evidence in the articles are not or no longer smoking guns, we have them this time. We will produce them in the form of compelling testimonies and newly discovered material evidence.*⁷⁸ (emphasis supplied)

*For reasons grounded in constitutional fidelity and institutional responsibility, I urge this committee to allow the constitutional process to move forward. Let the evidence be tested. Let accountability be pursued.*⁷⁹ (emphasis supplied)

108. On March 3, 2026, despite claiming that the committee only deals with the issue in substance and "does not really inquire first into the evidence," Rep. De Lima nonetheless adverted to an "evidentiary stage":

Thank you, Madam Chair. Although I wish to state first at the outset that in dealing with the issue on sufficiency in substance, we do not really inquire first into the evidence. But of course, in terms of really substantiating the essential grounds, the essential facts as pleaded, we can always check whether there are supporting evidence or annexes as submitted, as attached to the complaint and later to be supplemented by other evidence in the proper time. And the proper time is during the evidentiary hearings. Kasi pagkatapos po kasi ng pag file ng answer, pag file ng reply, pag file ng rejoinder, kung meron, pwede pa pong magdagdag ng mga ebidensya including affidavits doon. So just to satisfy the

⁷⁷ 1987 Constitution, Article XI, Section 3(6)

⁷⁸ See COMMITTEE ON JUSTICE | March 2, 2026, Congress TV Digital https://www.youtube.com/watch?v=p_yLIUyiYMg (last accessed March 27, 2026), 1:22:00-1:22:30; petitioner undertakes to submit a USB copy of the downloaded files should this Honorable Court require it

⁷⁹ Id., 1:24:48-1:25:10

gentleman that yes we have supporting documents, supporting evidence. The attachments consist of Annex A to Annex CC or double C.⁸⁰ (emphasis supplied)

*Clear po yan? Sa sections 3 and 4 of Rule 130, as amended, the photocopies are attached and these are photocopies that are admissible to the same extent as the originals. These are duplicates to the originals under the House's custody. **So that is our position, na hindi kailangan unless authenticity is questioned at the proper time. And again, that would be at the evidentiary stage. But even that, handa po ang complainants to present yung certified true copies which actually form part already of the records of this House.**⁸¹ (emphasis supplied)*

109. In a media interview also on March 18, 2026, Rep. Luisto mentioned that *"this will be a mini-trial because the full-blown trial will happen in the Senate."*⁸² Relative to this "mini-trial," Letters⁸³ were sent to the Committee on Justice and the House of Representatives thru the Speaker, respectively containing motions that principally request for *subpoena duces tecum* of purported evidence and adequate protection of Mr. Ramil L. Madriaga. She likewise repeated her position that the Vice President's counsel cannot participate in the mini-trial, emphasizing that direct examination and the cross-examination must be conducted by the Justice members alone.⁸⁴

110. In another interview on March 20, 2026,⁸⁵ Rep. Luistro also mentioned that *"It should be the respondent herself presenting the evidence assisted by lawyers"*⁸⁶ and that *"committee members are supposed to examine the evidence and the witnesses which are being presented by the complainant on one hand and the respondent on the other hand."*⁸⁷

111. In an interview on March 27, 2026, Representative Joel Chua, also a member of the respondent Committee on Justice, stated in a published media interview that:

*Kaya nga po napakaimportante rin no na siya po ay mai-try dito sa impeachment dahil ito pong impeachment ito po ay test of fitness ng ating mga lider...*⁸⁸ (emphasis supplied)

⁸⁰ See Day 2 of House Impeachment proceedings vs Sara Duterte – March 3, 2026, Rappler, available at <https://www.youtube.com/watch?v=MnIVdKdtfg8> (last accessed March 29, 2026), 39:28-40:43

⁸¹ *Id.*, 43:15-43:59

⁸² See ANC Alerts SoundBytes, <https://www.youtube.com/shorts/FbpKQ-dzdGw> (last accessed March 29, 2026)

⁸³ Letters dated March 5, 2026 and March 17, 2026 of Rep. Jose Manuel Tadeo I. "Chel" Diokno to the Chairperson of the Committee on Justice and the House of Representatives thru its Speaker, Rep. Faustino "Bojie" De Guzman Dy III

⁸⁴ See Headstart: Rep. Gerville Luistro on what's next after VP impeach raps found 'sufficient in grounds', ANC 24/7, available at <https://www.youtube.com/watch?v=59YvCPGSVpM> (last accessed March 22, 2026)

⁸⁵ See Luistro: VP Sara must personally present evidence in impeachment case, Bilyonaryo News Channel, available at <https://bnc.bilyonaryo.com/luistro-vp-sara-must-personally-present-evidence-in-impeachment-case/news/> (last accessed March 29, 2026)

⁸⁶ *Id.*

⁸⁷ *Id.*

⁸⁸ See House Justice Committee, iginilit na sinusunod ang rules of impeachment, UNTV News and Rescue, available at <https://www.youtube.com/watch?v=4ai3RDTaBy0> (last accessed March 29, 2026), 2:28-2:41

112. This statement by Rep. Chua evinces a clear, deliberate intent to pursue a trial against petitioner before respondent Committee on Justice.

113. During the hearing on March 25, 2026,⁸⁹ respondent Committee on Justice acted on the motions to issue subpoena, thereby compelling the submission of documents and supposed evidence outside of those that have already been appended to the Saballa and Cabrera Complaints.⁹⁰

114. Respondent Committee on Justice also approved the issuance of subpoena *duces tecum* to the National Bureau of Investigation, directing the agency to provide duly certified records of its investigation into the alleged threats made by the Vice President against President Ferdinand R. Marcos, Jr., First Lady Marie Louise A. Marcos, and Former House Speaker Ferdinand Martin G. Romualdez.⁹¹

115. Thereafter, acting on a separate motion and following deliberation and voting, respondent Committee on Justice approved the issuance of subpoena *duces tecum* to the Office of the Ombudsman to compel the submission of the Vice President's Statements of Assets, Liabilities, and Net Worth covering the periods of 2022 to 2025, as well as periods when she was not yet the Vice President in 2007 to 2013 and 2016 to 2022.⁹²

116. In sum, respondent Committee on Justice issued compulsory processes to produce and introduce documents that include subpoenaed documents of the Vice President's SALNs, NBI findings on its probe of the alleged threats against the President, First Lady and former House Speaker, documents related to confidential and intelligence funds of the Office of the Vice President and the Department of Education during the Vice President's tenure as Secretary, certifications from the Philippine Statistics Authority on identities of recipients of confidential and intelligence funds from the Vice President's offices, affidavit of Ramil L. Madriaga who claimed to be the alleged bagman of the Vice President, tax records of the Vice President and her husband, Manases R. Carpio, and business records of the Vice President and her husband.⁹³

117. It also subpoenaed individuals hoping to produce some prejudicial testimonial evidence from Atty. Gloria A. Camora of the Commission on Audit, Ramil L. Madriaga, Atty. Cynthia Viñas-Pantonal, the notary public who signed Madriaga's affidavit, representative of the Legislative Library Archives Division of HOR for the production of materials from the Committee on Good Government and Public Accountability, and Atty. Michael Wesley T. Poa, who is one of the Vice President's lawyers and former DepEd undersecretary, and a representative of the Philippine Statistics Authority.⁹⁴

⁸⁹ See House panel to subpoena Sara Duterte SALN, NBI findings on threat vs Marcos, ABS-CBN, available at <https://www.abs-cbn.com/news/nation/2026/3/25/house-panel-to-subpoena-sara-duterte-saln-nbi-findings-on-threat-vs-marcos-1241> (last accessed March 29, 2026)

⁹⁰ *Id.*

⁹¹ *Id.*

⁹² *Id.*

⁹³ *Id.*

⁹⁴ *Id.*

118. Under the given circumstances, it is evident that the proceedings before the respondent Committee on Justice are, in truth and substance, a trial in disguise. Its members' use of various nomenclatures such as "mini-trial," "hearing proper" or "a process akin to a preliminary investigation"⁹⁵ does not change its true nature. The authority to adjudicate on the merits of the parties' claims and defenses and supposed testing of their respective evidence, including the issuance of compulsory processes to produce and introduce testimonial and documentary evidence, is simply not a power that respondents HOR and its Committee on Justice may exercise at any given point in the entire impeachment process.

119. To allow respondent Committee on Justice to undertake a trial and embark on a fishing expedition is to allow them to circumvent the limits of their function and usurp the prerogatives of the impeachment court solely vested in the Senate acting as such.

120. Again, respondent HOR has no such power whatsoever under the Constitution, much less a mere committee. The determination of the merits of the parties' respective claims and defenses is not within the contemplation of the hearing envisioned under Section 3(2), Article XI of the Constitution precisely because it is only the Senate acting as an impeachment court that is authorized to conduct trial under Section 3(6), Article XI.

121. While Section 7 of the Rules of Procedure in Impeachment Proceedings of the 19th Congress, HOR adopted by the current Congress indeed appears to grant the Committee the authority to conduct a hearing, the same cannot go beyond what the Constitution allows. Thus, any portion of said Rules suggesting that the Committee may conduct a "mini-trial," in effect, encroaches on a power that does not constitutionally belong to the HOR.

122. Also, the subsequent committee proceedings following the alleged determination of the sufficiency in all aspects – form, substance, and grounds - of the Saballa and Cabrera Complaints on March 4, 2026 and March 18, 2026, are not only unconstitutional but also a redundancy.

123. By proceeding to conduct a so-called "mini-trial", respondent Committee on Justice effectively concedes one of two things: either its prior finding of alleged sufficiency of the Saballa and Cabrera Complaints was erroneous, or it is now engaged in a massive fishing expedition to shore up impeachment complaints that, on their face, are sorely inadequate.

124. Certainly, the proceedings being undertaken by respondent Committee on Justice is not the hearing contemplated under Section 3(2), Article XI of the Constitution:

⁹⁵ See Luistro stands by 'mini trial' term for Sara Duterte impeach hearings, Inquirer.net, available at https://newsinfo.inquirer.net/2201233/luistro-stands-by-mini-trial-term-for-sara-duterte-impeach-hearings?utm_medium=social&utm_source=facebook&fbclid=IwDGRjcAQwnVRleHRuA2FibQlXMQBzcnRjBmFwcF9pZAo2NjI4NTY4Mzc5AAEe42GlyyyZvzM6Xlq5aGOC7lFjbNx_iWEI_AbxZsXsCp1d5qiVxu0qH8SqXno_aem_lerkJoOTswhqrs97sOSJ3w (last accessed March 29, 2026)

A verified complaint for impeachment may be filed by any Member of the House of Representatives or by any citizen upon a resolution or endorsement by any Member thereof, which shall be included in the Order of Business within ten session days, and referred to the proper Committee within three session days thereafter. The Committee, **after hearing**, and by a majority vote of all its Members, shall submit its report to the House within sixty session days from such referral, together with the corresponding resolution. The resolution shall be calendared for consideration by the House within ten session days from receipt thereof. (emphasis supplied)

125. Certainly, the term “hearing” as contemplated under this provision necessarily presupposes that the Committee has completed its screening of the impeachment complaints, and is in fact ready to vote on the submission of its report to the House as a body and in plenary, for the latter's consideration and approval by vote.

126. Since the Committee on Justice has supposedly completed its determination of sufficiency in all aspects - form, substance and grounds - of the two remaining impeachment complaints, the only thing left for it to do is to submit its report thereon to the plenary within 60 session days from such referral. Nothing in the Constitution allows a mere committee to further conduct a *mini trial* and exercise powers ancillary to it. Allowing this transgression is to tolerate the respondent Committee on Justice's attempt to blur the distinct boundaries of powers set by no less than the fundamental law.

127. It cannot also be argued that whatever proceedings being conducted by respondent Committee on Justice are authorized under the Rules adopted by the current Congress in impeachment proceedings because the rules themselves must be consistent with the Constitutional provisions. This is a basic tenet that this Honorable Court declared on page 3 of its Resolution dated January 28, 2026 in Duterte:

We also affirm that the House of Representatives has the sole prerogative to initiate impeachment complaints and to promulgate its rules of impeachment in accordance with the requirements of the Constitution. **However, its Rules must be consistent with the provisions of our Constitution.**⁹⁶ (emphasis supplied)

128. That impeachment Rules must be compliant with the Constitution was made clear as early as in the 2003 ruling of this Honorable Court in Francisco⁹⁷ wherein the Supreme Court declared Sections 16 and 17 of Rule V of the Rules of Impeachment Proceedings adopted by the then-12th Congress unconstitutional. In doing so, the Supreme Court aptly reminded:

It is basic that all rules must not contravene the Constitution which is the fundamental law. If as alleged Congress had absolute rule making power, then it would by necessary implication have the power to alter or amend the meaning of the

⁹⁶ See Duterte, supra at note 4

⁹⁷ Francisco, supra at note 2

Constitution without need of referendum.⁹⁸ (emphasis supplied, underscoring retained)

129. Plainly, Sections 7 and 8 of the Rules of Procedure in Impeachment Proceedings are also unconstitutional to the extent that they authorize the questioned proceedings that imitate a trial and permit the exercise of powers reserved exclusively to the impeachment court. The Constitution does not vest a mere committee of the HOR any authority to perform those functions. Respondent Committee on Justice cannot exercise an authority where none exists. Said *unconstitutional* provisions provide:

Section 7. Submission of Evidence and Memoranda. – After receipt of the pleadings, affidavits and counter-affidavits and relevant documents provided for in Section 6, or the expiration of the time within which they may be filed, the Committee shall determine whether the complaint alleges sufficient grounds for impeachment.

If it finds that sufficient grounds for impeachment do not exist, the Committee shall dismiss the complaint and submit the report required hereunder. If the Committee finds that sufficient grounds for impeachment exist, the Committee shall conduct a hearing. The Committee, through the Chairperson, may limit the period of examination and cross-examination by members of the Committee. The Committee shall have the power to issue compulsory processes for the attendance of witnesses and the production of documents and other related evidence.

Hearings before the Committee shall be open to the public except when the security of the State or public interest requires that the hearings be held in executive session.

After the submission of evidence, the Committee may require the submission of memoranda, after which the matter shall be submitted for resolution.

Section 8. Protection to Complainants or Witnesses. – The House may, upon proper petition, provide adequate protection to a complainant or witness if it is shown that the personal safety of the complainant or witness is in jeopardy because of participating in the impeachment proceeding.

130. Accordingly, neither the petitioner nor her counsel may be compelled to participate in the Committee's mini-trial as it completely lacks jurisdiction to conduct any form of trial whatsoever. Absent such jurisdiction, any attempt by the respondent Committee on Justice to act as though it were the impeachment court, or to wield powers incidental to any form of trial, is **unconstitutional**.

131. ***Respondent Committee on Justice has no power to improvise new and/or additional rules in impeachment proceedings without the imprimatur of the HOR acting in plenary and prior publication.*** During its hearing on March 25,

⁹⁸ Francisco, *supra* at note 2

2026, respondent Committee on Justice likewise approved the following so-called ground rules for its contemplated mini-trial:

GUIDELINES

1. Ang Komite ay may tatlumpu't walo (38) na regular na Miyembro. Ang quorum ay one-fifth (1/5) ng kabuuan.
2. **Ang ex-officio Members ay may boses at may boto.**
3. Ang mga nais magsalita ay kailangang makipag-ugnayan sa Committee Secretary upang maitala ang kanilang pangalan.
4. Magkakaroon tayo ng alternating recognition ng Minority at Majority, na may limang (5) minuto ang bawat isa.
5. Maaari tayong magbigay ng second round kung may oras.
6. Hinihiling ng Chairperson na hintayin muna ang kaniyang pagkilala bago magsalita upang mapanatili ang kaayusan.
7. Sa mismong pagdinig, ang mga resource persons ay susuriin ng mga Miyembro ng Komite alinsunod sa *Section 7 of the Rules of Procedure in Impeachment Proceedings*. Ang mga resource person ay hindi papayagang magsalita o gumawa ng mga interjection maliban kung, at hanggang sa, sila ay kilalanin ng Chairperson.
8. **Tanging ang mga Miyembro ng Komite lamang ang may karapatang suriin o i-cross-examine ang mga resource persons. Ang mga partido ay maaaring humingi ng pahintulot mula sa Chairperson na magsumite ng mga tanong na itatanong ng Chairperson, kung sa kanyang opinion, ay kinakailangan ang mga ito para maging malinaw ang talakayan.**
9. **Ang pakikilahok ng mga abogado ng mga Partido ay limitado sa: (a.) pagpapayo sa kanilang mga kliyente tungkol sa kanilang karapatan batay sa Konstitusyon; (b.) magsumite ng mga tanong sa Chairperson ayon sa par. 8, at (c.) paghain ng appropriate na manifestation, at kung i-require ng Komite, magsumite ng kani-kanilang memorandum ayon sa *Rules of Procedure in Impeachment Proceedings*.⁹⁹ (emphases supplied)**

132. Again, however, respondent Committee on Justice is devoid of any power to promulgate rules governing impeachment proceedings as the Constitution exclusively gives that power to the HOR alone, and not to any of its officers, members, or committee.

133. The so-called "guidelines" were neither promulgated nor approved by the HOR and thus, constitutionally infirm and an unmistakable usurpation of the rule-

⁹⁹ Received by the petitioner on March 25, 2026; A copy of the Guidelines received by the petitioner via the Committee on Justice e-mail address is attached as Annex K

making authority reserved solely in the HOR under Section 3(8), Article XI of the Constitution. This cannot be allowed.

134. The act of respondent Committee on Justice in assuming a power explicitly reserved to the HOR itself sets a dangerous precedent where a mere committee can supplant, amend, supplement or in any way alter the rules governing impeachment proceedings thereby inviting arbitrariness and undermining constitutional safeguards.

135. Accordingly, said "guidelines", which unduly restrict opportunity for meaningful participation by the petitioner to confront witnesses against her while affording wide latitude to her prospective prosecutors, must be struck down. To rule otherwise would be to sanction an arbitrary exercise by the respondent Committee on Justice of a power that does not belong to it.

136. Moreover, this exposes the real agenda of respondent Committee on Justice – a demolition job against petitioner. This is plain from the statements made by its members, particularly through its Vice Chairperson, Rep. Ysabel Maria Zamora, that they "have the numbers" to impeach petitioner,¹⁰⁰ even before the conclusions of the supposed hearings. This renders the constitutional process of impeachment an orchestrated show only meant to further political interests, sully petitioner's reputation and not to supposedly serve as an instrument of accountability.

137. That these proceedings were borne out of nothing more than purely political motives, and not an exercise of a Constitutionally-enshrined act is clear from the above-quoted, express statements relating to the alleged number of votes that they purportedly have to impeach petitioner. This impeachment is thus solely being used as a political weapon, stripping it of its constitutional and legal nature.

138. **No due process.** In Duterte, this Honorable Court reminded us that due process applies to the *entire* impeachment process.¹⁰¹

139. While due process is a malleable concept, it nonetheless is anchored on fairness and equity.¹⁰² As early as 1967, this Honorable Court held that the standard of due process which must exist both as a procedural and a substantive requisite to free any governmental action from the imputation of legal infirmity is its responsiveness to the supremacy of reason and obedience to the dictates of justice.¹⁰³ Negatively put, arbitrariness is ruled out and unfairness avoided.¹⁰⁴

140. Contrary to the facile commentaries of some pundits, the mere issuance of a notice for petitioner to appear before respondent Committee on Justice and

¹⁰⁰ House justice panel's Zamora on votes to impeach VP Sara: 'We have the numbers,' GMA News Online, available at <https://www.gmanetwork.com/news/topstories/nation/981723/house-votes-zamora-sara-duterte-impeachment/story/> (last accessed March 29, 2026)

¹⁰¹ See Duterte, supra at note 4

¹⁰² See Saunar vs. Executive Secretary, G.R. No. 186502, December 13, 2017

¹⁰³ See Ermita-Malate Hotel and Motel Operators Association, Inc., et al. vs. City of Manila, G.R. No. L-24693, July 31, 1967

¹⁰⁴ *Id.*

participate in its *mini-trial*, does not, by itself, satisfy the constitutional demands of due process. The essence of due process is not merely the giving of the opportunity to be heard but also the opportunity to be heard at a meaningful time and in a meaningful manner.¹⁰⁵ In other words, procedural due process requires more than a mere notice but a genuine and meaningful opportunity to be heard.

141. In this case, however, the circumstances show that these fundamental requisites of due process are absent in both elements of time and manner. In the first place, the respondents HOR and Committee on Justice are bereft of lawful authority to conduct any form of trial or "mini-trial." Absent such lawful jurisdiction, the proceedings before the respondent Committee on Justice cannot, by any stretch, be considered a proper forum where the petitioner can be heard in a meaningful manner. This is in fact evident from Section 7 of the Rules adopted by the respondent HOR, which restricts the examination and cross-examination of supposed witnesses exclusively to the committee members, thereby foreclosing any meaningful participation by the petitioner whether by herself or through counsel.

142. Equally troubling is the fact that many, if not all, of the members of the respondent Committee on Justice are also the very personalities who have either endorsed the impeachment complaints now purportedly under scrutiny, or who were instrumental in prior, failed impeachment efforts against the petitioner in 2025. In fact, its incumbent Chairperson is the same personality who sought the opening of the purported investigation against the petitioner in 2024 before the Committee on Good Governance and Public Accountability.

143. It is inherently repugnant to the very guarantee of due process that petitioner is being subjected to a mini-trial by her own accusers who now sit in judgment on the viability of the impeachment complaints against her and who will also act as her prosecutors before the impeachment court, in the event that the latter is constituted. Certainly, this is not the wisdom of the Constitution when it drew clear lines between the powers that may be exercised by the respondent HOR and the Senate in the impeachment process.

144. Equally, petitioner is deprived of a meaningful time to confront the accusations against her before the proper court precisely because no impeachment court before which a trial may lawfully proceed has yet been constituted at this very point. The respondent Committee on Justice cannot simply just transform itself into a mini-court to conduct a supposed mini-trial.

145. Moreover, in Saunar, the Supreme Court added that due process requires an opportunity to confront and cross-examine adverse witnesses.¹⁰⁶ Evidently, any rule, such as portions of Section 7, that runs counter to these pronouncements undermines the safeguards guaranteed under the Constitution and therefore, must be struck down as unconstitutional.

¹⁰⁵ Saunar, *supra*

¹⁰⁶ *Id.*

146. When the Supreme Court in Francisco declared Sections 16 and 17 as violative of the Constitution, the Court, citing multiple cases, clarified that:

In *Osmeña v. Pendatun*, this Court held that it is within the province of either House of Congress to interpret its rules and that it was the best judge of what constituted "disorderly behavior" of its members. However, in *Paceta v. Secretary of the Commission on Appointments*, Justice (later Chief Justice) Enrique Fernando, speaking for this Court and quoting Justice Brandeis in *United States v. Smith*, declared that where the construction to be given to a rule affects persons other than members of the Legislature, the question becomes judicial in nature. In *Arroyo v. De Venecia*, quoting *United States v. Ballin, Joseph & Co.*, Justice Vicente Mendoza, speaking for this Court, held that while the Constitution empowers each house to determine its rules of proceedings, **it may not by its rules ignore constitutional restraints or violate fundamental rights**, and further that there should be a reasonable relation between the mode or method of proceeding established by the rule and the result which is sought to be attained. It is only within these limitations that all matters of method are open to the determination of the Legislature.¹⁰⁷ (underscoring and italics retained; emphasis supplied; citations omitted)

147. Here, Section 7 of the Rules adopted by respondent HOR and being used by respondent Committee on Justice in the proceedings before it undeniably contravenes the constitutional delineation of the roles of the HOR and Senate under Section 3(1) and (6) of Article XI in the impeachment process. Yet, Francisco is clear and explicit: while the Constitution empowers each house to determine its rules of proceedings, **it may not by its rules ignore constitutional restraints or violate fundamental rights**.¹⁰⁸

148. Thus, the inclusion by the respondent Committee on Justice of any form of trial and its issuance of compulsory processes aimed at obtaining evidence against the petitioner in the impeachment process, constitute a grave and impermissible encroachment upon the exclusive prerogative of the Senate to sit and act as an impeachment court.

149. ***Due process rights and the tenets of fair play were violated.*** In clarifying the constitutional requirements of impeachment, this Honorable Court held in Duterte that "the impeachment process is primarily a legal, political, and constitutional procedure."¹⁰⁹ It is not a purely political proceeding.¹¹⁰ This means that the Bill of Rights, especially the due process clause and the right to speedy disposition of cases, applies to the **entire impeachment process**.¹¹¹

¹⁰⁷ *Francisco*, supra at note 2

¹⁰⁸ *Id.*

¹⁰⁹ Resolution dated January 28, 2026 in *Duterte*, supra note at 4, p. 3

¹¹⁰ *Id.*

¹¹¹ *Id.*

150. Due process, as stated by the Supreme Court in Duterte, includes an inquiry on whether there is sufficient justification for depriving a person of life, liberty, or property:

The primary constitutional question that confronts us is one of due process, as guaranteed under Section 1, Article III of the Constitution. Due process evades a precise definition. *The purpose of the guaranty is to prevent arbitrary governmental encroachment against the life, liberty and property of individuals. The due process guaranty serves as a protection against arbitrary regulation or seizure.* Even corporations and partnerships are protected by the guaranty insofar as their property is concerned.

The due process guaranty has traditionally been interpreted as imposing two related but distinct restrictions on government, "procedural due process" and "substantive due process." *Procedural due process refers to the procedures that the government must follow before it deprives a person of life, liberty, or property. Procedural due process concerns itself with government action adhering to the established process when it makes an intrusion into the private sphere. Examples range from the form of notice given to the level of formality of a hearing.*

If due process were confined solely to its procedural aspects, there would arise absurd situation of arbitrary government action, provided the proper formalities are followed. Substantive due process completes the protection envisioned by the due process clause. It inquires whether the government has sufficient justification for depriving a person of life, liberty, or property. (Emphasis added; citations omitted)

151. Citing Saunar, the Supreme Court explained in Duterte that due process is a concept grounded on fairness and equity, and further emphasized the importance of hearing, exchange of pleadings, and presentation of evidence to ensure that decisions of administrative bodies are **based on accurate appreciation of facts**.¹¹²

To reiterate, due process is a malleable concept anchored on fairness and equity. The due process requirement before administrative bodies is not as strict compared to judicial tribunals in that it suffices that a party is given a reasonable opportunity to be heard. *Nevertheless, such "reasonable opportunity" should not be confined to the mere submission of position papers and/or affidavits and the parties must be given the opportunity to examine the witnesses against them.* The right to a hearing is a right which may be invoked by the parties to thresh out substantial factual issues. *It becomes even more imperative when the rules itself of the administrative body provides for one.* While the absence of a formal hearing does not necessarily result in the deprivation of due process, it should be acceptable only when the party does not invoke the said right or waives the same. (Emphasis added)

152. Notwithstanding that these doctrinal precepts were already explained by the Supreme Court prior to the deliberations of the impeachment complaints against

¹¹² *Id.*; see also Resolution in Duterte, p. 34

the Vice President, the Committee on Justice *still* failed to observe the basic tenets of fair play and due process, resulting in arbitrary government action.

153. There were **double standards** employed in dealing with the impeachment complaints filed against President Ferdinand R. Marcos, Jr. and the Vice President, which favored the former and prejudiced the latter.

154. The equal protection clause provides a fundamental principle enshrined in the Bill of Rights of the 1987 Constitution. It is rooted in Section 1, Article III of the Constitution, which states:

No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

155. This clause ensures that individuals or groups in similar circumstances are treated equally under the law. In the context of Philippine political law, this has far-reaching implications in guaranteeing fairness, justice, and equality within legal frameworks and government actions.

156. Here, the President and the Vice President are placed in similar circumstances and same category considering that both are impeachable officers and actually became the subject of impeachment complaints in 2026. The Committee on Justice is thus duty-bound under the Constitution to treat them equally under the law by applying the same set of standards in the impeachment proceedings against each of them.

157. As will be demonstrated herein, however, the Committee on Justice employed double standards that favored the President, leading to the dismissal of the impeachment cases against him. On the other hand, these double standards gravely infringed the Vice President's constitutional right to equal protection of the laws since a different set of standards was used in order to sustain two impeachment complaints against her.

158. For example, in the impeachment complaint against the President, the accusation of kidnapping of Former President Rodrigo R. Duterte was considered insufficient by the Committee on Justice considering that there was still a pending *habeas corpus* case pertaining thereto with this Honorable Court. Yet, in the impeachment complaint against the Vice President however, the accusations of misuse of confidential funds as well as the accusations of corruption by one Ramil L. Madriaga were taken hook, line, and sinker by the Committee on Justice despite the publicly known status of pending cases related thereto with the Commission on Audit (confidential funds) and the Office of the City Prosecutor of Taguig City (perjury case against Madriaga).

159. Note that the HOR's Committee Report No. 111 dated February 9, 2026 laid down the supposed bases in dismissing the impeachment complaints filed by de

Jesus and Maza, *et al.* against the President for insufficiency in substance.¹¹³ During their deliberations and as stated in said committee report, the Committee on Justice is merely tasked to determine whether "there is a recital of facts constituting the offense charged and determinative of the jurisdiction of the committee."¹¹⁴

160. Among the notable grounds that the Committee on Justice used to justify the dismissal of the de Jesus' impeachment complaint for insufficiency in substance are:

3. There have been cases instituted before the Supreme Court, primarily a Petition for Writ of Habeas Corpus of Rodrigo Roa Duterte, among others, which precisely seek to question the arrest and alleged kidnapping of the former President. Hence, to attribute the illegality of the arrest and alleged kidnapping to the President is premature and baseless.
4. The allegation of drug addiction fails to allege the ultimate facts of when the alleged use of illegal drugs occurred, how it was committed, and how it affected any official function.
5. The allegation of drug addiction, based on the alleged statements of the sister of the President, Sen. Imee Marcos, unaccompanied by an affidavit, authentication, or corroboration, is mere hearsay and lacks probative value in impeachment proceedings. The allegation lacks independent corroboration. The allegation remains purely speculative. There are no sworn statements, medical findings, drug test results, official investigation on record presented to support this allegation.

*** *** ***

8. The inclusion of Unprogrammed Appropriations has been practiced since 1989 up to the present. Once included and approved in the national budget, Unprogrammed Appropriations are implemented by the agencies concerned, and not by the President.
9. The allegation that the President benefitted from kickbacks fails to identify any specific line item, project, program, or special provision in the GAA that was supposedly inserted at the President's directive, does not state the exact amount allegedly inserted, and does not plead any over act personally performed by the President to effect the alleged insertion. There is no recital of facts that will constitute a violation of Republic Act No. 3019, otherwise known as the "Anti-Graft and Corrupt Practices Act."
10. The statements of former Rep. Elizaldy Co on his "video confessions" regarding the funds from flood control projects being delivered to the President's allies are mere hearsay as they were not made under oath. The complaint likewise does not contain any sworn affidavits or authentication, nor does it

¹¹³ A copy of the Committee Report No. 111 dated February 9, 2026 is attached as **Annex J**

¹¹⁴ Rules of Procedure in Impeachment Proceedings, Rule III, Section 5

meaningfully address the possibility that the statements are self-serving or politically motivated.

161. Meanwhile, the Committee on Justice's purported bases for dismissing the Maza, *et al.* impeachment complaint for alleged insufficiency in substance was grounded on the following:

1. The "BBM Parametric Formula" appears in a DPWH policy issuance or policy document, not in a presidential issuance or act personally attributable to the President. There is no evidence or official record showing that the President issued, approved, or directly implemented the formula.
2. There is no recital of fact that shows that the President authored, ordered, or used the "BBM Parametric Formula" of "Allocables" to commit a corrupt act. The complaint merely infers culpability on the part of the President from the branding and from the "managed" stage of the policy, which contains the phrase "priorities of leaders".

*** *** ***

4. Even if Cabinet secretaries are considered as alter egos of the President for purposes of executive control, the doctrine of qualified political agency does not automatically convert every potentially culpable administrative issuance into a personally attributable and culpable act of the President. The complaint does not allege that the President directed, approved, ratified, or even knew of the "BBM Parametric Formula".
5. During the State of the Nation Address of the President on July 28, 2025, the President himself ordered an investigation into possible corruption in flood control projects. This demonstrates good faith on the part of the President in scrutinizing irregularities in the said projects, rather than tolerating or willfully ignoring corrupt acts.

*** *** ***

10. The doctrine of operative fact recognizes that a law or executive act is presumed valid and constitutional while in force and, even if later declared unconstitutional, may still produce valid and legal effects, especially if people relied on it on good faith. Hence, the provision in the 2024 GAA authorizing the transfer of excess funds of all Government-Owned or Controlled Corporations to the National Government is presumed valid when those funds were transferred, even though the said provision was later declared to be unconstitutional.

*** *** ***

12. There is yet no pronouncement by the Supreme Court that unprogrammed appropriations per se are unconstitutional.
13. While the statements of Usec. Bernardo might corroborate the statements of former Rep. Zaldy Co, there is nothing in the

statements of Usec. Bernardo which directly links the President to any of the allegations.

14. The Cabral files cannot be a basis for impeachment because it has not been authenticated.
15. The legal standard of command responsibility and personal culpability cannot stand because there is no statement that the President knew or should have known about his subordinates' unlawful acts.

162. As stated in the Committee Report No. 111, the de Jesus and Maza, *et al.* impeachment complaints were dismissed by the Committee on Justice for insufficiency in substance because:

- (i) there are no court decisions which show that President Marcos Jr. committed unlawful or unconstitutional acts or impeachable offenses;
- (ii) the corroborative documentary and testimonial evidence supporting the allegations in the impeachment complaints are unworthy of credence, lack probative value, or have not been authenticated;
- (iii) there is no showing that President Marcos Jr. is aware of the commission of any unconstitutional or illegal acts by his subordinates;
- (iv) the consideration of external acts, such as the directive to order the investigation on flood control anomalies, as a sign of good faith; and
- (v) that on the basis of their own interpretation of the relevant provisions of law and doctrinal pronouncements, there are no impeachable offenses.

163. In the proceedings pertaining to the Vice President however, the same standards appear not to have been applied by the Committee on Justice in determining whether the Saballa and Cabrera impeachment complaints satisfy the test of sufficiency in substance test. No sufficient justification or compelling circumstance exists to justify such disparate treatment.

164. On the contrary, the Committee on Justice, in its deliberations of the Saballa and Cabrera Complaints against the Vice President, plainly disregarded the Petition for Review in "Sara Z. Duterte, *et al.* v. Nilda B. Plaras," docketed as COA CP Case No. 2024-0194 before the Commission on Audit – Commission Proper.

165. To recall, the subject of that appeal is the Notice of Disallowance involving the same confidential funds that constitute the principal basis of the Saballa and Cabrera Complaints accusing the Vice President of the alleged misuse and malversation of such funds.

166. Thus, the issue on the propriety of the documentary evidence of payments submitted in compliance with the reportorial requirements of the JC has yet to be determined with finality by this Honorable Court inasmuch as the eventual decision which will be rendered by the Commission on Audit – Commission Proper can still be questioned through a Petition for Certiorari under Rule 65 in relation to Rule 64 of the Rules of Court.

167. Moreover, the Notice of Disallowance itself neither states that the Vice President misused and malversed confidential funds, nor does it raise any issue regarding the manner or timing of their disbursement or utilization. Yet, notwithstanding this fact, its contents seemed to have been treated as establishing a supposed nexus of the Vice President's alleged impeachable acts.

168. It is thus evident that the Committee on Justice did not extend the same consideration to the pending appeal before the Commission on Audit, and to the absence of any court decision declaring the Vice President guilty of unlawful or unconstitutional acts, as it did with respect to the impeachment complaint against the President.

169. Further, the Committee on Justice effectively pre-judged the probative value and admissibility of the alleged pieces of evidence against the Vice President. This is plainly shown by the statement of Rep. Leila M. De Lima during the deliberations, categorically declaring that the accusations contained in the Saballa Complaint are purportedly *truthful* – “the Complaint states not just ultimate facts [...] *hindi po ito mga alegasyong imbento o haka-haka lamang*. They have been the subject of legislative inquiries, media scrutiny, and official documentation.”¹¹⁵

170. Such a pronouncement prematurely assumes the existence, authenticity and credibility of purported materials relied on by the complainants despite these having yet to be formally presented before the Impeachment Court, authenticated or subjected to examination. By treating the allegations against the Vice President as established truth even before trial begins, the Committee on Justice has in effect pre-judged the evidentiary weight of supposed materials that, at this very point, have yet to be introduced before the proper court, that is, the impeachment court.

171. It is thus clear that respondent Committee on Justice went beyond its authority and prematurely declared matters that should only be determined after supposed pieces of evidence have been duly established before the proper court and

¹¹⁵ See LIVE: House Justice Panel resumes deliberations on impeachment cases vs. VP Sara Duterte, INQUIRER.net, available at <https://www.youtube.com/watch?v=GzkueLurGoY&t=> (last accessed March 9, 2026)

with the required degree of proof, especially when the accusations themselves remain conjectural and rest merely on conclusions rather than proven facts.

172. In addition, Ramil A. Madriaga's¹¹⁶ alleged Affidavit,¹¹⁷ insofar as it claims that the Vice President allegedly conspired with certain individuals to distribute money seems to have been treated as gospel truth, despite being equally unauthenticated, inherently incredible, of questionable origin and devoid of any supporting evidence other than his mere say-so.

173. On the contrary, it appears from the televised proceedings of the Committee on Justice that the serious accusations against the President and other high-ranking public officials were summarily disregarded. By doing so, it becomes even more manifest that double standards were employed in the treatment of the impeachment complaints against the latter and the Vice President.

174. Simply then, unequal standards were applied in evaluating the allegations against parties similarly situated insofar as the complaints filed against both the President and Vice President allege grounds for their impeachment. This becomes more evident when the testimonies of supposed resource persons during the QuadComm hearings in 2024, despite being elicited through leading questions and under circumstances suggesting pressure under threat of contempt, were given probative value and relied upon as bases for the impeachment complaints against the Vice President.

175. In contrast, serious allegations revolving around misuse and corruption of billions of public funds, appeared to have been summarily set aside by the respondent Justice Committee to justify the dismissal of the impeachment complaints against the President. This disparate treatment reflects an uneven application of standards and scrutiny in the determination of sufficiency in form and substance of the complaints against the Vice President.

176. It has been held by the Supreme Court that "[d]ue process, in the end, merely is 'the embodiment of the sporting idea of fair play.'"¹¹⁸ In the Decision in Duterte, it was emphasized that "[a]s with all constitutional processes, impeachment must be exercised with **strict adherence to due process and fairness**. It is not a stage for political drama or factional fights. It should be invoked only when truly necessary, and always in the service of the public good."¹¹⁹

177. It was further expounded that "**[d]ue process, as a requirement, must be present in the entire impeachment process.**"¹²⁰ This certainly includes even the deliberations made by the Committee on Justice on the sufficiency in form and substance of the Saballa and Cabrera Complaints.

¹¹⁶ Hereafter, Madriaga

¹¹⁷ See Saballa Complaint, Annex A

¹¹⁸ *Abaya v. Villegas*, G.R. No. L-25641, December 17, 1966

¹¹⁹ See *Duterte*, supra at note 4

¹²⁰ *Id.*

178. As held by the Supreme Court, “[t]he hearing and deliberations are important to due process.”¹²¹ Part and parcel of due process and fairness is the application of the same parameters and considerations in this determination. Otherwise, the entire impeachment proceedings are rendered void for being marred with substantial violations of this elementary constitutional right.

179. The Supreme Court explained the nature of impeachment proceedings, and the rights which are required to be upheld therein:

Grave abuse of discretion is anathema to due process and invites judicial inquiry when committed by a certain branch of government. **The legal nature of impeachment proceedings, particularly its criminal and administrative aspects, requires upholding the right to due process and the presumption of innocence at all times.** (emphasis supplied; citations omitted)

180. Indubitably, had the same standards applied to the impeachment complaints against President Marcos Jr. been applied to the Saballa and Cabrera Complaints, the Committee on Justice should have likewise found them insufficient in substance. Instead, the records of the proceedings reveal that inconsistent standards were imposed in the treatment of these impeachment complaints, resulting in the violation of the Vice President’s right to due process.

181. In Duterte, the Supreme Court considered the violation of the fundamental rights of the respondent as among the instances that will trigger the application of the One-Year Bar Rule, and which ousts the House or the Senate of jurisdiction:

Hence, a nuanced approach is warranted to remain faithful to the purpose of the one-year bar, given the impossibility of initiation due to the House’s inaction and adjournment of its term. The one-year bar should be reckoned from the initiation of the impeachment complaint if unacted upon or when it is dismissed if it has been partially acted upon. The one-year bar may also start to commence upon the violation of the fundamental rights of the respondent which ousts the House or the Senate of jurisdiction. (emphasis retained; underscoring added)

182. **No ultimate facts.** Assuming *arguendo* that the proceedings on the Saballa and Cabrera Complaints are not prohibited under Section 3(5) Article XI, the alleged determination by the respondent Committee on Justice of sufficiency in substance and grounds of the two remaining impeachment complaints despite lack of any ultimate facts still demonstrates the double standards employed against the petitioner.

183. It is basic that a complaint must state only ultimate facts. This rule is embodied in Section 1, Rule 8 of the 2019 Revised Rules on Civil Procedure, which

¹²¹ See Duterte, supra at note 4

the House of Representatives 20th Congress had adopted under Section 17 Rule VII of its Rules of Procedure¹²² in Impeachment Proceedings:¹²³

SECTION 1. *In general.* – Every pleading shall contain in a methodical and logical form, a plain, concise and direct statement of the **ultimate facts**, including the evidence on which the party pleading relies for his or her claim or defense, as the case may be.¹²⁴ (emphasis supplied)

184. Section 5, Rule III of the Rules of Procedure in Impeachment Proceedings requires the recital of **ultimate facts**:

Section 5. Determination of Sufficiency in Substance. – Should the committee find the complaint sufficient in form, it **shall** then determine if the complaint is sufficient in substance. The requirement of substance is met if there is a recital of facts constituting the offense charged and determinative of the jurisdiction of the committee. **If the committee finds that the complaint is not sufficient in substance, it shall dismiss the complaint and submit its report as provided hereunder.**¹²⁵ (emphasis added)

185. The ultimate fact standard requires that "[e]very pleading shall contain in a methodical and logical form, a plain, concise and direct statement of the ultimate facts on which the party pleading relies for his claim or defense, as the case may be, omitting the statement of mere evidentiary facts."¹²⁶ As such, matters that are required and expected to be sufficiently included in a complaint and, thus, accorded the assumption of truth, **exclude those that are mere legal conclusions, inferences, evidentiary facts, or even unwarranted deductions.**¹²⁷

186. Note that the assumption of truth (commonly known as hypothetical admission of truth), accorded under the test, does not cover all the allegations pleaded in the complaint.¹²⁸ Only ultimate facts or those facts which the expected evidence will support are considered for purposes of the test.¹²⁹ **It does not cover legal conclusions or evidentiary facts.**¹³⁰

187. In Guillermo v. Philippine Information Agency,¹³¹ the Supreme Court sustained the dismissal of the complaint for failure to state any cause of action and ruled that to determine the sufficiency of a cause of action, only the ultimate facts and

¹²² Rules of Procedure in Impeachment Proceedings, Rule VII, Section 17 provides that "[t]he Rules of Court shall, as far as practicable, apply to impeachment proceedings before the House."

¹²³ *Id.*

¹²⁴ Revised Rules on Civil Procedure, Rule 8, Section 1

¹²⁵ Rules of Procedure in Impeachment Proceedings, Rule III, Section 5

¹²⁶ *Magellan Aerospace Corporation v. Philippine Air Force*, G.R. No. 216566, February 24, 2016

¹²⁷ *Id.*

¹²⁸ *Id.*

¹²⁹ *Id.*

¹³⁰ *Id.*

¹³¹ *Guillermo v. Philippine Information Agency, et al.*, G.R. No. 223751, March 15, 2017, *citing* *Zuniga-Santos v. Gran*, G.R. No. 197380, October 8, 2014

not legal conclusions or evidentiary facts alleged in the complaint should be considered:

It is well to point out that the plaintiff's cause of action should not merely be "stated" but, importantly, the statement thereof should be "sufficient." This is why the elementary test in a motion to dismiss on such ground is **whether or not the complaint alleges facts which if true would justify the relief demanded**. As a corollary, it has been held that **only ultimate facts and not legal conclusions or evidentiary facts are considered for purposes of applying the test**. This is consistent with Section 1, Rule 8 of the Rules of Court which states that the complaint need only allege the ultimate facts or the essential facts constituting the plaintiffs cause of action. A fact is essential if they cannot be stricken out without leaving the statement of the cause of action inadequate. Since the inquiry is into the sufficiency, not the veracity, of the material allegations, it follows that the analysis should be confined to the four corners of the complaint, and no other.

188. Note further that in determining the substance of an impeachment complaint, even Section 5, Rule III of the Rules of Procedure in Impeachment Proceedings adopted by the current House of Representatives 20th Congress requires a recital of facts, and not of mere suppositions and conclusions; otherwise, the same must suffer dismissal:

[...] The requirement of substance is met if **there is a recital of facts constituting the offense charged and determinative of the jurisdiction of the committee**. If the committee finds that the complaint is not sufficient in substance, it shall dismiss the complaint and shall submit its report as provided hereunder.¹³² (emphasis supplied)

189. Here, neither of the two subsisting impeachment complaints allege the essential or ultimate facts necessary to sustain the charges. What they present instead are bare conclusions of fact and law, heavily laden with self-serving conjectures, logical fallacies, and speculative claims, none of which can substitute for the clear and specific statement of ultimate facts required to support an impeachment complaint.

190. The quantum of evidence was also revised such that the new standard of proof requires *prima facie* evidence with "**reasonable certainty of conviction**." This is a higher threshold than the previous "probable cause" standard. Reasonable certainty of conviction means that the evidence — whether testimonial, documentary, or physical — should be strong enough that, if unchallenged, it could establish all elements of the alleged crime and result in a conviction beyond a reasonable doubt.

191. It must be noted, however, that this higher quantum of evidence under the current DOJ-NPS Rules is established only by the evidence-at-hand,¹³³ and not by the procurement of so-called **additional evidence** not contained in the impeachment

¹³² Rules of Procedure in Impeachment Proceedings, Rule III, Section 5

¹³³ See DOJ-NPS Rules in Preliminary Investigations and Inquest Proceedings, Rule II, Section 5, 2025

complaints, as what the respondent Committee on Justice seeks to accomplish when it issued various subpoenas on March 25, 2026.

192. It is thus without a doubt that while the Rule III of the Rules of Procedure in Impeachment Proceedings adopted by the 20th Congress only calls for the finding of probable cause, still, the Vice President cannot be subjected to flippant standards in terms of evaluating allegations and evidence against her. This is especially so when the current state of prosecutorial rules requires a higher quantum of evidence.

193. If indeed the respondent Committee on Justice likens its proceedings to a so-called preliminary investigation, then it should have made itself aware of its purpose, that is, not only to determine whether the respondent should be held for trial; **it is just as well for the purpose of securing the innocent against hasty, malicious and oppressive prosecution, and to protect him from an open and public accusation of a crime, from the trouble, expense and anxiety of a public trial.** More importantly, in the appraisal of the case presented to him for resolution, the duty of a prosecutor is more to do justice and less to prosecute.¹³⁴

194. **No impeachable offense.** In Duterte, this Honorable Court laid down the due process safeguards which must be strictly observed in impeachment proceedings:

Thus, the House of Representatives must ensure that the following due process safeguards are observed:

First, the acts or omissions constituting the proper charge must be: (a) committed during the term of the impeachable officer, not before they were elected or appointed; (b) fall under the crimes or offenses enumerated under Article XI, Section 2 of the Constitution, namely culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust.

The violations charged should be sufficiently grave as to be a violation of the definition of public trust in Article XI, Section 1 of the Constitution. For the president and the vice president, the violation charged must betray the trust of the electorate. For the members of the Supreme Court, the members of the constitutional commissions, and the Ombudsman, the violation charged must undermine their autonomy, independence, and impartiality. Members of collegial bodies cannot be answerable for any impeachment based upon the decisions of the collegial bodies as a whole, especially if these decisions pertain to their decisional prerogatives.

Second, the proper charge should be accompanied with sufficiently clear and convincing evidence that constitutes proof of the acts and omissions that are considered as impeachable offenses. [...] (Emphasis and italics in the original)

¹³⁴ See *Sales v. Adapon*, G.R. No. 171420, October 05, 2016

195. Here, the accusations against the Vice President set out in several articles consistently reveal a disregard of these cardinal safeguards. The alleged violations fall short of the gravity required to amount to a betrayal of public trust, graft and corruption and/or bribery, culpable violation of the Constitution, or high crimes. In truth, the accusations themselves are built not on established facts, but on mere conclusions, assumptions, speculations and a fundamentally flawed interpretation of the law.

196. To date, no final decision exists categorically declaring the disbursements illegal, unjustifiable, exorbitant, excessive, extravagant and/ or unconscionable. Complainants in the impeachment complaints or even the Committee on Justice itself cannot thus arrogate upon them the functions belonging exclusively to the Commission on Audit and ultimately, the Supreme Court.

197. Absent any final declaration of any irregularity, exorbitance, excessiveness, unconscionability or that these funds were used for the private benefit of the Vice President, the complainants in the subsisting impeachment complaints cannot logically posit any ultimate facts with respect to said disbursements. At best, what they offer and could state are mere conclusions of their own making, unsupported by any authoritative determination by a competent tribunal vested with the exclusive power to do so.

198. Ultimate facts are important substantial facts that either directly form the basis of the primary right and duty, or which directly make up the wrongful acts or omissions of the defendant. The term does not refer to the details of probative matter or particulars of evidence by which these material elements are to be established. It refers to principal determinate, constitutive facts, upon the existence of which, the entire cause of action rests.¹³⁵

199. Stated otherwise, the ultimate facts in this case refer to those allegations that will support the claim of betrayal of public trust, graft and corruption, and the commission of other high crimes. None exists here.

200. Again, the COA findings are not yet final, as it is the subject of a Petition for Review dated February 3, 2025 in "*Sara Z. Duterte, et al. v. Nilda B. Plaras, in her capacity as Assistant Commissioner – Officer-in-Charge of the Intelligence and Confidential Funds Audit Office*" and docketed as COA CP Case No. 2025-0194¹³⁶ before the Commission on Audit.

201. Thus, the disallowance made by the Commission on Audit could not have been made the basis of any supposed sufficiency of an impeachable offense against the Vice President, let alone be relied upon to support any claims that she misused or malversed the confidential funds.

202. At this point, no competent court or body has made a final determination that the Vice President misused or malversed confidential funds. Any such conclusion

¹³⁵ Remitere v. Montinola yda. De Yulo, G.R. No. L-19571, February 28, 1966

¹³⁶ A copy of Petition for Review dated February 3, 2025 in COA CP Case No. 2025-0194 is attached as Annex

by the complainants or by the Committee on Justice would intrude upon functions exclusively vested in the Commission on Audit under 2(1), Article IX of the 1987 Constitution, and ultimately before this Honorable Court, which alone may render a final and conclusive ruling on the Notice of Disallowance that forms as the sole basis of the complainants' allegations.

203. It is an elementary principle that mere allegation is not evidence and is not equivalent to proof.¹³⁷ Similarly, "charges based on mere suspicion and speculation likewise cannot be given credence."¹³⁸

204. The claims made in the remaining impeachment complaints relative to this issue speak for themselves. They consist of mere speculation, unsubstantiated conclusions of law and fact and unwarranted inferences—nothing more. They should have never been used to sustain a determination of sufficiency in substance and grounds.

205. ***No valid factual allegations exist pertaining to the alleged ill-gotten wealth; accusations rest merely on conclusions and speculations, and not on any established facts.*** The complainants in the subsisting Impeachment Complaints essentially claim that the Vice President allegedly committed culpable violation of the Constitution and betrayed public trust in amassing purported unexplained wealth as a public official and when she allegedly "failed" to disclose all her properties in her Statements of Assets, Liabilities, and Net Worth.¹³⁹

206. However, these allegations are premised on supposed disclosures made in her SALN prior to her assumption to an impeachable office, which neither the complainants nor the Committee on Justice can use to conclude that the allegation sufficiently establishes an impeachable offense. Again, this Honorable Court had already clarified this matter in its ruling in Duterte:

Thus, the House of Representatives must ensure that the following due process safeguards are observed:

First, the acts or omissions constituting the proper charge must be: (a) committed during the term of the impeachable officer, not before they were elected or appointed; (b) fall under the crimes or offenses enumerated under Article XI, Section 2 of the Constitution, namely culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust. (emphasis retained; underscoring supplied)

207. As complainants admit in the Saballa and Cabrera Complaints, the Vice President faithfully complied with both the 1987 Constitution and Republic Act No. 6713 because her SALNs for the years 2007 to 2017 were filed.

¹³⁷ See *Peter Lance Dillon v. Atty. Napoleon C. de Quiroz*, A.C. No. 12876, January 12, 2021

¹³⁸ *Id.*

¹³⁹ Saballa Complaint, p. 92

208. Here, the impeachment complaints present alleged figures on the Vice President's SALNs from the years 2007 to 2012 and the SALNs from 2016-2017 but broadly accuses her of amassing unexplained or ill-gotten wealth solely due to the perceived increase in her net worth.¹⁴⁰ Yet, no evidence was presented by complainants to substantiate this claim or how the amounts reflected in these publicly available documents were allegedly obtained illegally.

209. So, too, the assertions against the Vice President regarding her alleged ownership of purported undisclosed bank accounts is ridiculously based solely on an online article that was published in 2016.¹⁴¹ This so-called proof is hearsay twice removed and, thus, unreliable.¹⁴²

210. The impeachment complaints also clearly omit a fact that in the years 2013 to 2016, the Vice President took a leave from being a public servant when she decided to return to private life. She did not need to file any SALNs for those intervening years.

211. These complaints even admit the complete lack of evidence to support the complainants' groundless accusations regarding the Vice President's SALNs, revealing that the impeachment complaints were filed despite the lack of any evidentiary proof that would show her purported failure to disclose wealth or assets. The effectively concede that no evidence exists to substantiate their accusations. This only shows that the complaints were filed not on the strength of any existing evidence but on a mere speculation that publicized allegations might justify some fishing expedition, which the Committee on Justice in fact did when it issued the Subpoenas to compel the production not only of the petitioner's SALNs but of the bank and other records of her spouse and her law office.

212. In the letter dated March 5, 2026, Rep. Diokno sought for the production of certified true copies of the Vice President's SALNs, and even asked the Office of the Ombudsman to provide SALNs for the years 2022 to 2025, 2007 to 2013, and 2016 to 2022, allegedly, for the committee "to be apprised of the assets, liabilities, and net worth declared" by the Vice President "from the time she first entered public service until the present."¹⁴³

213. In the same letter, Rep. Diokno also requested for "a certification under oath stating whether or not the [Anti-Money Laundering Council] has in its possession any records pertaining to covered and/or suspicious transactions involving Sara Zimmerman Duterte, including but not limited to (1) accounts in her name; (2) accounts in the name of spouses Sara Zimmerman Duterte and Manases "Mans" Reyes Carpio; (3) accounts in the name of Sara Zimmerman Duterte and Rodrigo Roa Duterte; and

¹⁴⁰ Annex A, p. 44

¹⁴¹ *Id.*, p. 43

¹⁴² See *Norberto Pacquing v. Court of Appeals*, G.R. No. 122954, February 15, 2000; See also *UPCB General Insurance Co., Inc. v. Pascual Liner, Inc.*, G.R. No. 242328, April 26, 2021

¹⁴³ A copy of the Letter dated March 5, 2026 from Rep. Diokno is attached as Annex M

(4) accounts in the name of Sara Zimmerman Duterte with another person or persons; and if so, to attach duly certified true copies of all such records."¹⁴⁴

214. Notably, the expressed purpose for said request is allegedly "for the Committee to evaluate if Vice President Sara Z. Duterte acquired ill-gotten wealth or unexplained wealth during the relevant time period, and/or failed to declare SALNs during the relevant time period."¹⁴⁵

215. However, the finding of sufficiency in substance and grounds by the Committee on Justice necessarily presupposes that the allegations in the complaints are already supported by evidence-at-hand, and not by the prospect of some anticipated evidence yet to be unearthed.

216. Yet, said letter from Rep. Diokno, sent after the impeachment complaints have already been declared allegedly sufficient in form and substance, only serves to confirm the infirmity of that determination. In fact, such prior finding by the respondent Committee on Justice appears not as a result of a sound and impartial evaluation, but as a foregone conclusion.

217. The Committee on Justice cannot conduct an investigation to search for evidence to support accusations already made in the impeachment complaints. Doing so would amount to a "fishing expedition" by the HOR.

218. Jurisprudence is clear: the guarantees enshrined in the Bill of Rights applies to the entire impeachment process. Impeachment proceedings demand concrete and credible proof from the very outset, not conjectures and certainly, not mere innuendos paraded under a pretext of a demand for accountability. No such evidence exists here except a platform of personalities bent on orchestrating a public smear campaign against the petitioner through what it conveniently labels as a "mini-trial" or "preliminary investigation."

*Grounds in Support of the Application for the Issuance of a
Temporary Restraining Order and/or Writ of Preliminary Injunction*

219. The foregoing allegations are pleaded herein by reference.

220. ***Injunctive reliefs should be granted lest further injustice will be inflicted upon the petitioner resulting to grave and irreparable injury.*** Section 3 of Rule 58 provides the instances when a writ of preliminary injunction may be issued:

Section 3. Grounds for issuance of preliminary injunction. A preliminary injunction may be granted when it is established:

- a. That the applicant is entitled to the relief demanded, and the whole or part of such relief consists in restraining the commission or continuance of the act or acts complained of

¹⁴⁴ *Id.*

¹⁴⁵ *Id.*

or in requiring the performance of an act or acts, either for a limited period or perpetually;

- b. That the commission, continuance, or non-performance of the act or acts complained of during the litigation would probably work injustice to the applicant; or
- c. That a party, court, agency, or a person is doing, threatening, or is attempting to do, or is procuring or suffering to be done, some act or acts probably in violation of the rights of the applicant respecting the subject of the action or proceeding, and tending to render the judgment ineffectual. (underscoring supplied)

221. Settled jurisprudence holds that the following requisites must be proven first before a writ of preliminary injunction, whether mandatory or prohibitory, may be issued:

- a. The applicant must have a clear and unmistakable right to be protected;
- b. There is a material and substantial invasion of such right;
- c. There is an urgent need for the writ to prevent irreparable injury to the applicant; and

No other ordinary, speedy, and adequate remedy exists to prevent the infliction of irreparable injury.¹⁴⁶ (underscoring supplied)

222. In satisfying these requisites, the applicant for a writ of injunction need not substantiate his or her claim with complete and conclusive evidence since only *prima facie* evidence or a sampling is required to give the court an idea of the justification for the preliminary injunction pending the decision of the case on the merits.¹⁴⁷

223. Furthermore, if the matter is of extreme urgency and the applicant will suffer grave injustice and irreparable injury, a temporary restraining order may be issued *ex-parte*.¹⁴⁸

224. The Supreme Court explained in the case of Sps. Castro v. Sps. Dela Cruz¹⁴⁹ that before an injunctive writ may issue, the plaintiff must show a clear and unmistakable right:

For an injunctive writ to issue, a clear showing of extreme urgency to prevent irreparable injury and a clear and unmistakable right to it must be proven by the party seeking it. The primary objective of a preliminary injunction, whether prohibitory or mandatory, is to

¹⁴⁶ Bicol Medical Center v. Noe B. Botor, G.R. No. 214073, October 4, 2017

¹⁴⁷ *Id.*

¹⁴⁸ Revised Rules of Civil Procedure, Rule 58, Section 5

¹⁴⁹ Sps. Castro v. Sps. Dela Cruz, G.R. 190122, January 10, 2011

preserve the status quo until the merits of the case can be heard.
(emphasis supplied)

225. The case of RCBC Capital Corporation v. Banco de Oro Unibank, Inc.¹⁵⁰ further explains that the act complained of should be a violation of such right:

Before an injunctive writ can be issued, it is essential that the following requisites are present: (1) there must be a right in esse or the existence of a right to be protected; and (2) the act against which injunction to be directed is a violation of such right.

The onus probandi is on movant to show that there exists a right to be protected, which is directly threatened by the act sought to be enjoined. Further, there must be a showing that the invasion of the right is material and substantial and that there is an urgent and paramount necessity for the writ to prevent a serious damage.

226. Finally, Power Sites and Signs, Inc. v. United Neon¹⁵¹ requires that there be grave and irreparable injury:

It is settled that a writ of preliminary injunction should be issued only to prevent grave and irreparable injury, that is, injury that is actual, substantial, and demonstrable.

Damages are irreparable within the meaning of the rule relative to the issuance of injunction where there is **no standard by which their amount can be measured with reasonable accuracy.**

An irreparable injury which a court of equity will enjoin includes **that degree of wrong of a repeated and continuing kind which produce hurt, inconvenience, or damage that can be estimated only by conjecture, and not by any accurate standard of measurement.** (emphasis supplied)

227. All of these requisites are present in this case.

228. As to the first and second elements, it is undisputable that the petitioner enjoys the Constitutional right to due process, as enshrined in the Bill of Rights. In Duterte, this Honorable Court reminded us that due process applies to the *entire* impeachment process.

229. To recall, the circumstances show that these fundamental requisites of due process are absent in both elements of time and manner. Respondents HOR and Committee on Justice are bereft of lawful authority to conduct any form of trial or "mini-trial." Absent such lawful jurisdiction, the proceedings before the respondent Committee on Justice cannot, by any stretch, be considered a proper forum where the petitioner can be heard in a meaningful manner.

¹⁵⁰ RCBC Capital Corporation v. Banco de Oro Unibank, Inc., G.R. No. 196171, December 10, 2012

¹⁵¹ Power Sites and Signs, Inc. v. United Neon, G.R. No. 163406, November 24, 2009

230. Hence, the inclusion by the respondent Committee on Justice of any form of trial and its issuance of compulsory processes aimed at obtaining evidence against the petitioner in the impeachment process, constitute a grave and impermissible encroachment upon the exclusive prerogative of the Senate to sit and act as an impeachment court, and is a direct affront to petitioner's constitutional right to due process in impeachment proceedings.

231. Moreover, there were double standards employed in dealing with the impeachment complaints filed against President Ferdinand R. Marcos, Jr. and the Vice President, which favored the former and prejudiced the latter.

232. Although no valid referral of the four impeachment complaints was made, it nonetheless materially invaded the rights of the petitioner against more than one impeachment within a period of one year as the respondent Committee on Justice did in fact conduct multiple impeachment proceedings one after the other as a result of such void referral.

233. In addition, as the Honorable Court held in Duterte, the Office of the Vice President is neither decorative nor ornamental.¹⁵² It was deliberately created to ensure continuity in executive leadership¹⁵³ and thus, extending due process protections in impeachment proceedings does not merely safeguard the incumbent, but also protects the electorate that entrusted the office to them and their right to have a competent and qualified commander-in-chief leading them.¹⁵⁴

234. Citing Morfe v. Mutuc,¹⁵⁵ this Honorable Court considered security of tenure as a constitutional guarantee "analogous to property" that should be protected by due process.¹⁵⁶ Thus, the right to public office or the privilege to serve is not only a choice of occupation but an answer to the call of the electorate to deliver the public service committed to them.¹⁵⁷ This right is not only held by the incumbent but also by the public, knowing that their chosen public officers serve them.¹⁵⁸

235. Petitioner thus possesses a clear, unmistakable right not to be haled into, much less continually subjected to impeachment proceedings that are unconstitutional and founded upon equally void impeachment complaints.

236. Moreover, since the subject of the impeachment effort is the removal and perpetual disqualification of the second highest official of the country elected by the overwhelming number of the electorate, the issues raised are of transcendental importance, dictated by public welfare and the advancement of public policy, and demanded by the broader interest of justice, as the people's right to suffrage under Section 1, Article V of the Constitution is also at stake. Again, the rights to vote and be

¹⁵² Page 34, Resolution dated January 28, 2026, Duterte vs. House of Representatives, et al., *supra* at note 4

¹⁵³ *Id.*

¹⁵⁴ *Id.*

¹⁵⁵ G.R. No. L-20387, January 31, 1968

¹⁵⁶ *Id.*

¹⁵⁷ *Id.*

¹⁵⁸ *Id.*

represented by chosen representatives are the very bedrock of this country as a republican and democratic state.

237. The third element is likewise present here as there is an undeniable urgent need to prevent irreparable injury on the part of the petitioner who would otherwise be made to confront baseless accusations against her in a public “mini trial” before the respondent Committee on Justice and thereafter, the respondent Senate acting as an impeachment court, should the respondents HOR and Committee on Justice be allowed to continue with the impeachment proceedings. Needless to say, the resultant damages and injury that the petitioner may suffer, and is actually suffering, cannot be quantified in any manner.

238. There is extreme urgency to issue a Temporary Restraining Order and/or Writ of Preliminary Injunction in this case considering that the respondent Committee on Justice has given all indications that it will proceed with its “mini-trial” on dates it had already fixed on April 14, 22, and 29, 2026. In fact, said respondent had already ordered certain individuals to provide testimony in their mini-trial and produce evidence therein through the issuance of subpoenas during its hearing last March 25, 2026. All these indicate that there is paramount necessity to urgently issue an injunctive writ against the respondents enjoining them from conducting any and all proceedings relative to the subject impeachment complaints of this Petition.

239. Unless urgently restrained, the respondents HOR and Committee on Justice will continue to trample upon not only the petitioner's constitutionally-guaranteed rights but also of all other individuals subject of the respondent Committee on Justice's compulsory processes. The continuation of the proceedings before the House Committee on Justice will continue to harm not only the petitioner but also of the individuals subject of the subpoenas it issued.

240. The grave abuse of discretion amounting to lack or excess of jurisdiction committed by the respondents House of Representatives and Committee on Justice has placed not just the Vice President but the entire nation on the brink of uncertainty. When the Vice President was elected in 2022, she was the overwhelming people's choice, garnering the highest number of votes by any elected official in Philippine history. Today, this Honorable Court, as the final bastion of justice and protector of all constitutional rights, holds the power either to uphold the people's choice or to silence the people's voice.

241. How this Honorable Court decides the fate of the Vice President will not just reflect the individual beliefs of each Justice but also echo the sovereign will of the people and restore the Filipino people's faith in government and the institutions that lead them. It is a pivotal point in our history and it is the Supreme Court alone that can define the quality of our democracy and determine the course of our nation.

242. There is a reason why impeachment is the road less travelled – it is often the wrong road. No less than the Constitution reserves this *sui generis* process to the vilest and most treasonous of grounds committed by an exclusive list of impeachable government officials. As meticulously and unmistakably demonstrated in

this Petition, the impeachment proceedings against the petitioner are unconstitutional and continuing with them will result in a miscarriage of justice and a mockery of processes that our Constitution and laws have always aimed to protect.

243. The petitioner is ready, able, and willing to post a bond in the respondents' favor in an amount to be determined by this Honorable Court, to the effect that she will pay all damages that the respondents may suffer by reason of the temporary restraining order and preliminary injunction should it finally be determined that the petitioner is not entitled thereto.

Explanation for Service

Copies of this Petition for *Certiorari* and Prohibition were served through accredited courier due to distance and time constraints that render personal service impractical and inefficient.

Reliefs

WHEREFORE, it is respectfully prayed that:

(i) Upon the filing of this Petition, a temporary restraining order be issued to enjoin respondents HOR and Committee on Justice from proceeding with the impeachment proceedings before them and to desist from doing any and all acts relative and pursuant thereto;

(ii) After due proceedings, issue a writ of preliminary injunction enjoining all respondents from continuing or acting in pursuance of the impeachment proceedings relating to the Saballa and Cabrera Complaints for being unconstitutional, and from doing any and all acts relative and pursuant thereto, including any trial, mini-trial, or so-called preliminary investigation, issuance and enforcement of compulsory processes, and such other acts or incidents;

(iii) Sections 7 and 8 of the Rules of Procedure in Impeachment Proceedings, House of Representatives 19th Congress, adopted by the 20th Congress as well as the "Guidelines" issued by the respondent Committee on Justice be declared void and unconstitutional;

(iv) Thereafter, issue a final injunction, nullifying and setting aside the impeachment proceedings relating to the Saballa and Cabrera Complaints for being unconstitutional, and enjoining the respondents House of Representatives, Committee on Justice and the Senate of the Philippines, from doing any and all acts relative and pursuant thereto.

Other equitable reliefs are also prayed for.

Makati City, March 30, 2026

FORTUN NARVASA & SALAZAR

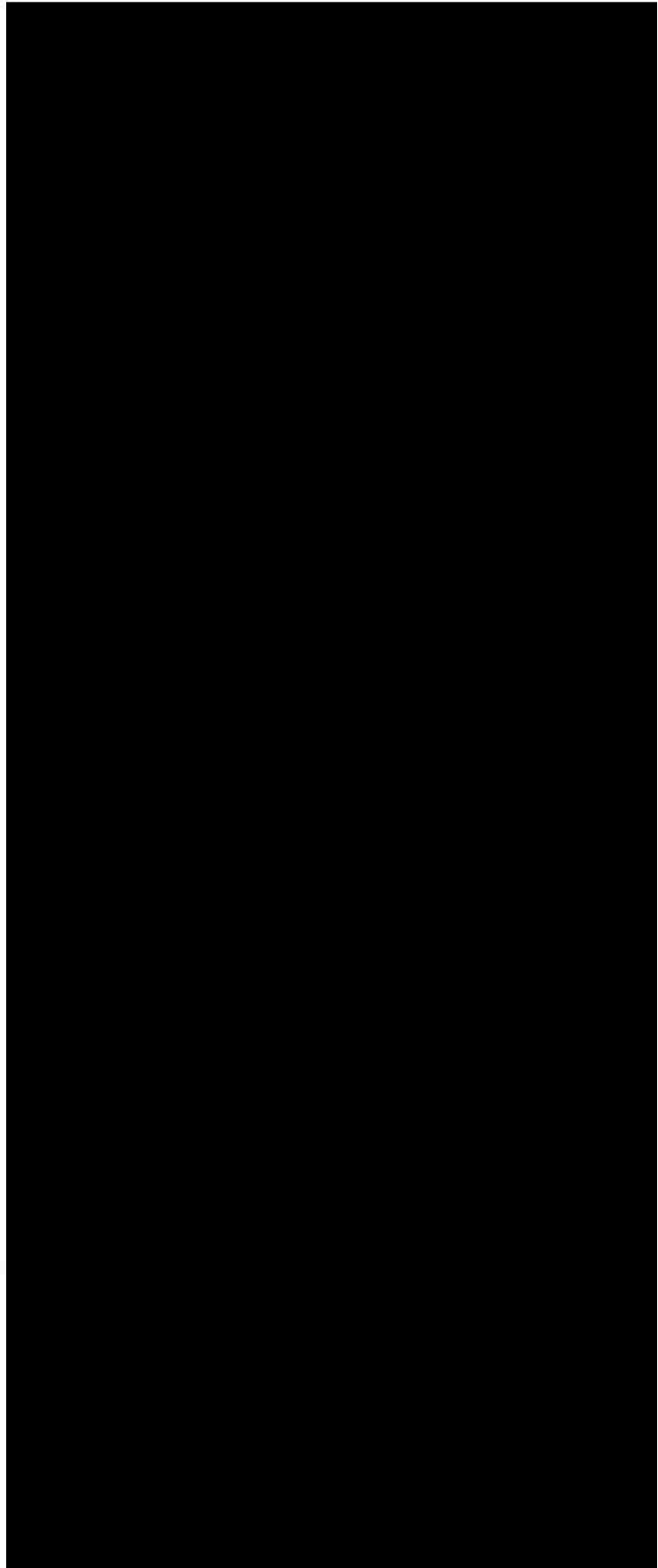
Counsel for Petitioner

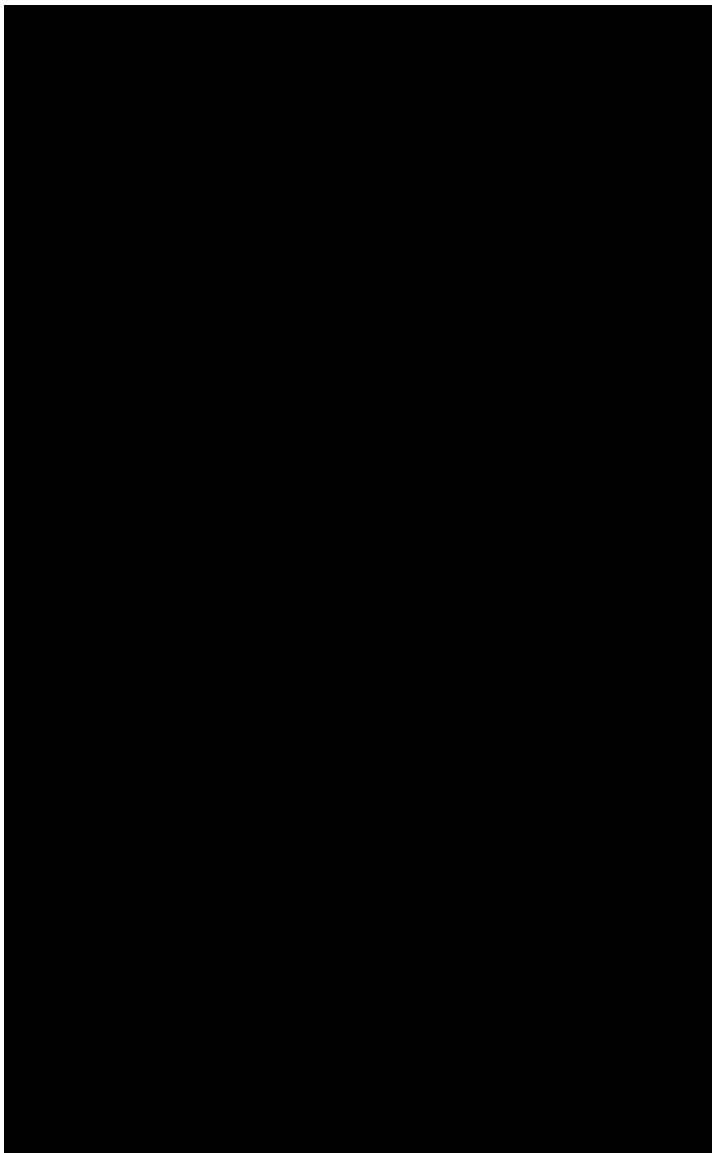
23rd Floor, Multinational Bancorporation Centre
6805 Ayala Avenue, City of Makati, 1226 Philippines

Telephone No. (63 2) 8812-8670

info@fnslaw.com.ph

By:





Copies furnished:
(Explanation for mode of service on page 53)

House of Representatives
Batasang Pambansa Complex
Batasan Hills, Quezon City

House of Representative's Committee on Justice
Batasang Pambansa Complex
Batasan Hills, Quezon City

Senate of the Philippines
Financial Centre, GSIS Building
J.W. Diokno Blvd., Pasay City

Sapayan Lim Alvarez and Ligutan



ea

Atty. Nathaniel G. Cabrera



Office of the Solicitor General
134 Amorsolo St., Legaspi Village
Makati City
4289-1-07

VERIFICATION AND CERTIFICATION

I, **SARA Z. DUTERTE**, Filipino, of legal age, and with address c/o my counsel, Fortun Narvasa & Salazar, at 23rd floor, Multinational Bancorporation Centre, 6805 Ayala Avenue, Makati City, under oath, depose and state that:

1. I am the Vice President of the Republic of the Philippines, and the Petitioner in the foregoing Petition for *Certiorari* and Prohibition.

2. I have caused the preparation of the foregoing Petition for *Certiorari* and Prohibition, read and understood all of its contents, and attest that all allegations contained therein are true and correct of my own personal knowledge and/or based on authentic records.

3. I confirm that the foregoing Petition for *Certiorari* and Prohibition is not being filed to harass, cause unnecessary delay, or needlessly increase the costs of litigation, and that the factual allegations therein have evidentiary support or, if specifically so identified, will also have evidentiary support after a reasonable opportunity for discovery.

4. I confirm that there is no other action or proceeding involving the same issues raised in this Petition for *Certiorari* and Prohibition that has been commenced or is pending with any court, tribunal or agency, except that: (a) I have filed my Consolidated Verified Answer *Ad Cautelam*¹ to the Saballa and Cabrera Complaints with the respondent Committee on Justice, without waiving any of my jurisdictional or other objections to those impeachment proceedings; and (b) Israelito Torreon and his co-petitioners filed with the Supreme Court a separate Petition for *Certiorari* and Prohibition, with prayer for the issuance of a temporary restraining order or writ of preliminary injunction, against the House of Representatives and its Committee on Justice. I did not participate in, nor was I consulted about, its filing or preparation, and I learned of said Petition only through media reports.

5. Should I learn that a similar action or proceeding has been filed or is pending before the Regional Trial Court, the Court of Appeals, the Supreme Court, or different divisions thereof, or any other court, tribunal or agency, I will notify this Honorable Court within five (5) calendar days from such notice.

I affix my signature herein to certify the truthfulness of the allegations in the pleading.



¹ Dated March 13, 2026

SUBSCRIBED AND SWORN to before me this 30th day of March 2026 in Makati City, the affiant personally appearing before me and exhibiting her Philhealth ID No. [REDACTED] competent evidence of her identity.

Doc. No. 138;

Page No. 24;

Book No. II;

Series of 2026

4327-1-07

VERIFIED DECLARATION

I, **KAROL GRACE G. OROCEO**, hereby declare that the document hereto submitted electronically in accordance with the Efficient Use of Paper Rule is complete and true copy of the document filed with the Supreme Court.

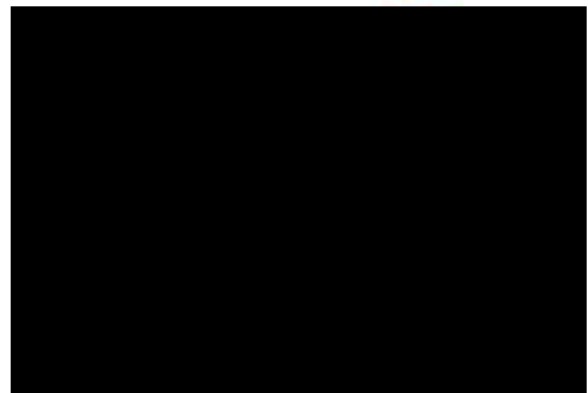

KAROL GRACE G. OROCEO

Counsel for Petitioner

April 1, 2026

SUBSCRIBED AND SWORN To before me on this 1st day of April, 2026,
affiant exhibiting her Driver's License No.  ary 7, 2033.

Doc. No. 209
Page No. 43
Book No. II
Series of 2026.



AFFIDAVIT OF FILING AND SERVICE SERVICE

I, **Ronnie Ballesteros**, of legal age, and subscribing under oath, depose and say:

1. I am an employee of the law firm of **FORTUN NARVASA & SALAZAR LAW OFFICES**, with business address at 23rd Floor, Multinational Bancorporation Centre, 6805 Ayala Avenue, Makati City;

2. On April 1, 2026 I served copies of "PETITION FOR CERTIORARI AND PROHIBITION" in the case entitled "SARA Z. DUTERTE, in her capacity as the Vice President of the Philippines vs. HOUSE OF REPRESENTATIVES OF THE PHILIPPINES, represented by FAUSTINO G. DY III, in his capacity as Speaker, HOUSE COMMITTEE ON JUSTICE, represented by REP. GERVILLE A. REYES-LUISTRO, in her capacity as Chairperson, SENATE OF THE PHILIPPINES, represented by VICENTE C. SOTTO III, in his capacity as Senate President, JOEL T. SABALLA, JOSELITO S. SARABIA, EDILBERTO J. BACULI, ROGELIO D. DEL ROSARIO, LEONARD P. AREVALO, PINKY L. TAM, MARIA LORETO A. LOPEZ, JALILIO O. DELA TORRE, DEMOCRITO C. BARCENAS, LOURDES U. BARCENAS, MA. LIZA H. RUEDAS, VIOLETA B. CECILIO, GERALDINE J. DENOGA, and NATHANIEL G. CABRERA" docketed as "G.R. No. _____ For: Petition for Certiorari and Prohibition under Rule 65 of the Rules of Court [With Urgent Application for Temporary Restraining Order and/ or Writ of Preliminary Injunction]" before the SUPREME COURT, MANILA CITY in the following manner:

2.1 **House of Representatives**
Batasang Pambansa Complex
Batasan Hills, Quezon City

_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon has been paid and contains instructions to the courier to return the mail to the Firm if undelivered.

2.2 **House of Representative's Committee on Justice**
Batasang Pambansa Complex
Batasan Hills, Quezon City

_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon has been paid and contains instructions to the courier to return the mail to the Firm if undelivered.

2.3 **Senate of the Philippines**
Financial Centre, GSIS Building
J.W. Diokno Blvd., Pasay City

_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon has been paid and contains instructions to the courier to return the mail to the Firm if undelivered.

2.4 _____

_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon has been paid and contains instructions to the courier to return the mail to the Firm if undelivered.

2.5 _____

_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon has been paid and contains instructions to the courier to return the mail to the Firm if undelivered.

2.6 **Office of the Solicitor General**
134 Amorsolo St., Legaspi Village
Makati City

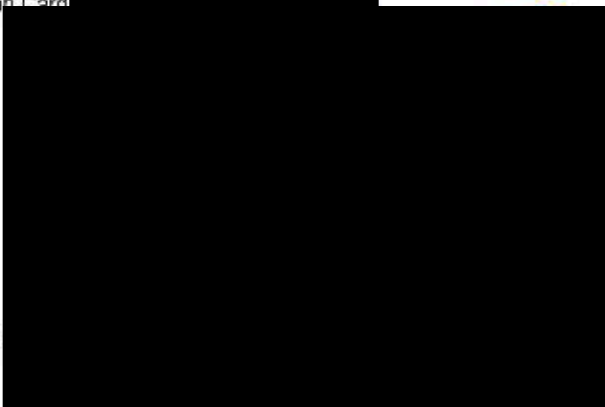
_____ by special courier, as evidenced by LBC Tracking No. _____ issued by LBC Express on April 1, 2026. I attest that airway bill thereon contains instructions to the courier to return the mail to the Firm if undelivered.

Makati City, April 1, 2026.

Ron _____

SUBSCRIBED AND SWORN to before me this _____ day of _____, 2026, _____ being personally known to me, _____ exhibited his Social Security System Identification Card _____

Doc. No. 212 :
Page No. 44 :
Book No. 11 :
Series of 2026.
4289-1-07



LBC EXPRESS, INC.
G/F CITYLAND CONDO 18, 156 HW DELA COSTA ST., MAKATI CITY
Tel. No. : (63) 2 - 88134174
VAT REG. TIN : 888-782-148-88135

CONSIGNEE: HOUSE OF, REPRESENTATIVES
And or/ care of:
Address: BATASANG PAMBANSA COMPLEX BATASAN HILLS
CENTRAL QUEZON CITY NATIONAL CAPITAL REGION NCR
Contact No.: 9000000000

Cargo KB Large

Quantity : 1
Origin : MA
Tran. Date : 04
Delivery Date : 04
Area Dest. : ME
Tran. Type : De
Cut-Off : 04

Actual Wt (Kg.) : 11
Volume Wt (cmXcmXcm):
Declared Value : 58
Said to Contain : DO

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back set forth by LBC EXPRESS

HAROLD AURELIO
Signature of Associate FOR

G/F CITYLAND CONDO 18, 156 HW DELA COSTA ST., MAKATI CITY
Tel. No. : (63) 2 - 88134174 VAT REG. TIN : 888-782-148-88135

CONSIGNEE
HOUSE OF REPRESENTATIVES COMMITTEE, ON
JUSTICE
And or/ care of:
BATASANG PAMBANSA
CENTRAL
QUEZON CITY
NATIONAL CAPITAL
Contact No.: 9

Cargo KB Large

Quantity : 1
Origin : MMA-SL703-CITYLAND 10
PM

-9.17

HAROLD AURELIO
Signature of Associate FOR

LBC EXPRESS, INC.
G/F CITYLAND CONDO 18, 156 HW DELA COSTA ST., MAKATI CITY
Tel. No. : (63) 2 - 88134174
VAT REG. TIN : 888-782-148-88135

CONSIGNEE: SENATE OF THE, PHILIPPINES
And or/ care of:
Address: FINANCIAL CTR GSIS BLDG J W DIOKNO BLVD
ANGAY 76 PASAY CITY NATIONAL CAPITAL REGION NCR
Contact No.: 9000000000

Cargo KB Large

Quantity : 1
Origin : MA
Tran. Date : 04
Delivery Date : 04
Area Dest. : ME
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back set forth by LBC EXPRESS

HAROLD AURELIO
Signature of Associate FOR

